

An Act

ENROLLED SENATE
BILL NO. 1627

By: Paxton of the Senate

and

Hilbert of the House

An Act relating to multiple versions of statutes; amending, merging, consolidating, and repealing multiple versions of statutes; amending 10A O.S. 2021, Section 1-2-101, as amended by Section 1, Chapter 26, O.S.L. 2025 (10A O.S. Supp. 2025, Section 1-2-101); repealing 10A O.S. 2021, Section 1-2-101, as amended by Section 1, Chapter 260, O.S.L. 2025 (10A O.S. Supp. 2025, Section 1-2-101); repealing 10A O.S. 2021, Section 1-2-101, as amended by Section 344, Chapter 486, O.S.L. 2025 (10A O.S. Supp. 2025, Section 1-2-101); amending 21 O.S. 2021, Section 13.1, as last amended by Section 1, Chapter 162, O.S.L. 2025 (21 O.S. Supp. 2025, Section 13.1); repealing 21 O.S. 2021, Section 13.1, as amended by Section 5, Chapter 59, O.S.L. 2024 (21 O.S. Supp. 2025, Section 13.1); repealing 21 O.S. 2021, Section 13.1, as last amended by Section 2, Chapter 18, O.S.L. 2025 (21 O.S. Supp. 2025, Section 13.1); repealing 21 O.S. 2021, Section 13.1, as last amended by Section 1, Chapter 352, O.S.L. 2025 (21 O.S. Supp. 2025, Section 13.1); amending 21 O.S. 2021, Section 425, as amended by Section 370, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 425); repealing 21 O.S. 2021, Section 425, as amended by Section 2, Chapter 329, O.S.L. 2025 (21 O.S. Supp. 2025, Section 425); amending 21 O.S. 2021, Section 540A, as amended by Section 192, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 540A); repealing 21 O.S. 2021, Section 540A, as amended by Section 1, Chapter 224, O.S.L. 2025 (21 O.S. Supp. 2025, Section 540A); amending 21 O.S. 2021, Section 644, as last amended by Section 3, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 644); repealing 21 O.S. 2021, Section

644, as last amended by Section 1, Chapter 147, O.S.L. 2025 (21 O.S. Supp. 2025, Section 644); repealing 21 O.S. 2021, Section 644, as last amended by Section 1, Chapter 322, O.S.L. 2025 (21 O.S. Supp. 2025, Section 644); repealing 21 O.S. 2021, Section 644, as last amended by Section 2, Chapter 162, O.S.L. 2025 (21 O.S. Supp. 2025, Section 644); amending 21 O.S. 2021, Section 650, as amended by Section 16, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 650); repealing 21 O.S. 2021, Section 650, as amended by Section 1, Chapter 32, O.S.L. 2025 (21 O.S. Supp. 2025, Section 650); amending 21 O.S. 2021, Section 748, as last amended by Section 20, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 748); repealing 21 O.S. 2021, Section 748, as last amended by Section 2, Chapter 291, O.S.L. 2025 (21 O.S. Supp. 2025, Section 748); amending 21 O.S. 2021, Section 843.5, as last amended by Section 8, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 843.5); repealing 21 O.S. 2021, Section 843.5, as amended by Section 6, Chapter 59, O.S.L. 2024 (21 O.S. Supp. 2025, Section 843.5); repealing 21 O.S. 2021, Section 843.5, as last amended by Section 1, Chapter 281, O.S.L. 2025 (21 O.S. Supp. 2025, Section 843.5); amending 21 O.S. 2021, Section 852.1, as amended by Section 187, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 852.1); repealing 21 O.S. 2021, Section 852.1, as amended by Section 1, Chapter 113, O.S.L. 2025 (21 O.S. Supp. 2025, Section 852.1); amending 21 O.S. 2021, Section 856.3, as amended by Section 159, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 856.3); repealing 21 O.S. 2021, Section 856.3, as amended by Section 1, Chapter 108, O.S.L. 2025 (21 O.S. Supp. 2025, Section 856.3); repealing 21 O.S. 2021, Section 888, as amended by Section 4, Chapter 455, O.S.L. 2002; amending 21 O.S. 2021, Section 1021.2, as last amended by Section 49, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1021.2); repealing 21 O.S. 2021, Section 1021.2, as amended by Section 9, Chapter 59, O.S.L. 2024 (21 O.S. Supp. 2025, Section 1021.2); amending 21 O.S. 2021, Section 1024.1, as last amended by Section 4, Chapter 29,

O.S.L. 2025 (21 O.S. Supp. 2025, Section 1024.1);
repealing 21 O.S. 2021, Section 1024.1, as amended by
Section 14, Chapter 59, O.S.L. 2024 (21 O.S. Supp.
2025, Section 1024.1); amending 21 O.S. 2021, Section
1031, as last amended by Section 397, Chapter 486,
O.S.L. 2025 (21 O.S. Supp. 2025, Section 1031);
repealing 21 O.S. 2021, Section 1031, as last amended
by Section 5, Chapter 151, O.S.L. 2024 (21 O.S. Supp.
2025, Section 1031); amending 21 O.S. 2021, Section
1040.12a, as last amended by Section 26, Chapter 486,
O.S.L. 2025 (21 O.S. Supp. 2025, Section 1040.12a);
repealing 21 O.S. 2021, Section 1040.12a, as amended
by Section 20, Chapter 59, O.S.L. 2024 (21 O.S. Supp.
2025, Section 1040.12a); repealing 21 O.S. 2021,
Section 1040.12a, as last amended by Section 3,
Chapter 29, O.S.L. 2025 (21 O.S. Supp. 2025, Section
1040.12a); amending 21 O.S. 2021, Section 1040.13b,
as last amended by Section 1, Chapter 23, O.S.L. 2025
(21 O.S. Supp. 2025, Section 1040.13b); repealing 21
O.S. 2021, Section 1040.13b, as last amended by
Section 399, Chapter 486, O.S.L. 2025 (21 O.S. Supp.
2025, Section 1040.13b); amending 21 O.S. 2021,
Section 1111, as last amended by Section 1, Chapter
60, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1111);
repealing 21 O.S. 2021, Section 1111, as last amended
by Section 1, Chapter 103, O.S.L. 2025 (21 O.S. Supp.
2025, Section 1111); repealing 21 O.S. 2021, Section
1111, as last amended by Section 1, Chapter 365,
O.S.L. 2025 (21 O.S. Supp. 2025, Section 1111);
repealing 21 O.S. 2021, Section 1115, as amended by
Section 5, Chapter 455, O.S.L. 2002; amending 21 O.S.
2021, Section 1123, as last amended by Section 2,
Chapter 281, O.S.L. 2025 (21 O.S. Supp. 2025, Section
1123); repealing 21 O.S. 2021, Section 1123, as last
amended by Section 2, Chapter 60, O.S.L. 2025 (21
O.S. Supp. 2025, Section 1123); repealing 21 O.S.
2021, Section 1123, as last amended by Section 38,
Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section
1123); amending 21 O.S. 2021, Section 1173, as last
amended by Section 1, Chapter 145, O.S.L. 2025 (21
O.S. Supp. 2025, Section 1173); repealing 21 O.S.
2021, Section 1173, as last amended by Section 118,

Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1173); amending 21 O.S. 2021, Section 1277, as amended by Section 2, Chapter 251, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1277); repealing 21 O.S. 2021, Section 1277, as amended by Section 1, Chapter 70, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1277); amending 21 O.S. 2021, Section 1289.16, as amended by Section 3, Chapter 261, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1289.16); repealing 21 O.S. 2021, Section 1289.16, as amended by Section 131, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1289.16); repealing 21 O.S. 2021, Section 1290.5, as amended by Section 5, Chapter 146, O.S.L. 2021; repealing 21 O.S. 2021, Section 1451, as amended by Section 1, Chapter 221, O.S.L. 2016; repealing 21 O.S. 2021, Section 1521, as amended by Section 2, Chapter 221, O.S.L. 2016; repealing 21 O.S. 2021, Section 1541.2, as amended by Section 5, Chapter 221, O.S.L. 2016; repealing 21 O.S. 2021, Section 1541.3, as amended by Section 6, Chapter 221, O.S.L. 2016; repealing 21 O.S. 2021, Section 1577, as amended by Section 11, Chapter 221, O.S.L. 2016; repealing 21 O.S. 2021, Section 1578, as amended by Section 12, Chapter 221, O.S.L. 2016; repealing 21 O.S. 2021, Section 1579, as amended by Section 13, Chapter 221, O.S.L. 2016; repealing 21 O.S. 2021, Section 1621, as amended by Section 15, Chapter 221, O.S.L. 2016; repealing 21 O.S. 2021, Section 1704, as amended by Section 16, Chapter 221, O.S.L. 2016; repealing 21 O.S. 2021, Section 1705, as amended by Section 17, Chapter 221, O.S.L. 2016; repealing 21 O.S. 2021, Section 1713, as amended by Section 18, Chapter 221, O.S.L. 2016; repealing 21 O.S. 2021, Section 1731, as amended by Section 19, Chapter 221, O.S.L. 2016; amending 21 O.S. 2021, Section 1903, as amended by Section 2, Chapter 405, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1903); repealing 21 O.S. 2021, Section 1903, as amended by Section 62, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1903); amending 47 O.S. 2021, Section 11-902, as amended by Section 1, Chapter 347, O.S.L. 2025 (47 O.S. Supp. 2025, Section 11-902); repealing 47 O.S. 2021, Section 11-902, as

amended by Section 3, Chapter 172, O.S.L. 2025 (47 O.S. Supp. 2025, Section 11-902); repealing 47 O.S. 2021, Section 11-902, as amended by Section 6, Chapter 305, O.S.L. 2025 (47 O.S. Supp. 2025, Section 11-902); repealing 47 O.S. 2021, Section 11-902, as amended by Section 33, Chapter 486, O.S.L. 2025 (47 O.S. Supp. 2025, Section 11-902); and declaring an emergency.

SUBJECT: Criminal statutes duplicate sections

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 10A O.S. 2021, Section 1-2-101, as amended by Section 1, Chapter 26, O.S.L. 2025 (10A O.S. Supp. 2025, Section 1-2-101), is amended to read as follows:

Section 1-2-101. A. 1. The Department of Human Services shall establish a statewide centralized hotline for the reporting of child abuse or neglect to the Department.

2. The Department shall provide hotline-specific training including, but not limited to, interviewing skills, customer service skills, narrative writing, necessary computer systems, making case determinations, and identifying priority situations.

3. The Department is authorized to contract with third parties in order to train hotline workers.

4. The Department shall develop a system to track the number of calls received, and of that number:

- a. the number of calls screened out,
- b. the number of referrals assigned,
- c. the number of calls received by persons unwilling to disclose basic personal information including, but not limited to, first and last name, and

- d. the number of calls in which the allegations were later found to be unsubstantiated or ruled out.

5. The Department shall electronically record each referral received by the hotline and establish a secure means of retaining the recordings for twelve (12) months. The recordings shall be confidential and subject to disclosure only if a court orders the disclosure of the referral. The Department shall redact any information identifying the reporting party unless otherwise ordered by the court.

6. Each referral received by the hotline alleging abuse or neglect wherein the alleged perpetrator is someone other than a person responsible for the child's health, safety, or welfare shall be immediately reported to the appropriate local law enforcement agency, in writing, for the purpose of conducting a possible criminal investigation. The hotline supervisor shall ensure that a report has been made upon receipt of a referral prior to the referral being screened out. The Department shall maintain a record of its transmission of each report to law enforcement.

B. 1. Every person having reason to believe that a child under the age of eighteen (18) years is a victim of abuse or neglect shall report the matter immediately to the Department of Human Services. Reports shall be made to the hotline provided for in subsection A of this section. Any allegation of abuse or neglect reported in any manner to a county office shall immediately be referred to the hotline by the Department. Provided, however, that in actions for custody by abandonment, provided for in Section 2-117 of Title 30 of the Oklahoma Statutes, there shall be no reporting requirement.

- 2. a. Every school employee having reason to believe that a student under the age of eighteen (18) years is a victim of abuse or neglect shall report the matter immediately to the Department of Human Services and local law enforcement. Reports to the Department shall be made to the hotline provided for in subsection A of this section. Any allegation of abuse or neglect reported in any manner to a county office shall immediately be referred to the hotline by the Department. Provided, however, that in actions for custody by abandonment, provided for in Section 2-117

of Title 30 of the Oklahoma Statutes, there shall be no reporting requirement.

- b. Every school employee having reason to believe that a student age eighteen (18) years or older is a victim of abuse or neglect shall report the matter immediately to local law enforcement.
- c. In reports required by subparagraph a or b of this paragraph, local law enforcement shall keep confidential and redact any information identifying the reporting school employee unless otherwise ordered by the court. A school employee with knowledge of a report required by subparagraph a or b of this paragraph shall not disclose information identifying the reporting school employee unless otherwise ordered by the court or as part of an investigation by local law enforcement or the Department.

3. Every physician, surgeon, or other health care professional including doctors of medicine, licensed osteopathic physicians, residents and interns, or any other health care professional or midwife involved in the prenatal care of expectant mothers or the delivery or care of infants shall promptly report to the Department instances in which an infant tests positive for alcohol or a controlled dangerous substance. This shall include infants who are diagnosed with Neonatal Abstinence Syndrome or Fetal Alcohol Spectrum Disorder.

4. No privilege or contract shall relieve any person from the requirement of reporting pursuant to this section.

5. The reporting obligations under this section are individual, and no employer, supervisor, administrator, governing body or entity shall interfere with the reporting obligations of any employee or other person or in any manner discriminate or retaliate against the employee or other person who in good faith reports suspected child abuse or neglect, or who provides testimony in any proceeding involving child abuse or neglect. Any employer, supervisor, administrator, governing body or entity who discharges, discriminates or retaliates against the employee or other person shall be liable for damages, costs and attorney fees. If a child

who is the subject of the report or other child is harmed by the discharge, discrimination or retaliation described in this paragraph, the party harmed may file an action to recover damages, costs and attorney fees.

6. Every physician, surgeon, other health care professional or midwife making a report of abuse or neglect as required by this subsection or examining a child to determine the likelihood of abuse or neglect and every hospital or related institution in which the child was examined or treated shall provide, upon request, copies of the results of the examination or copies of the examination on which the report was based and any other clinical notes, X-rays, photographs, and other previous or current records relevant to the case to law enforcement officers conducting a criminal investigation into the case and to employees of the Department of Human Services conducting an investigation of alleged abuse or neglect in the case.

C. Any Except as provided in Section 593 of Title 21 of the Oklahoma Statutes, any person who knowingly and willfully fails to promptly report suspected child abuse or neglect or who interferes with the prompt reporting of suspected child abuse or neglect may be reported to local law enforcement for criminal investigation and, upon conviction thereof, shall be guilty of a misdemeanor. Any Except as provided in Section 593 of Title 21 of the Oklahoma Statutes, any person with prolonged knowledge of ongoing child abuse or neglect who knowingly and willfully fails to promptly report such knowledge may be reported to local law enforcement for criminal investigation and, upon conviction thereof, shall be guilty of a Class D1 felony offense and shall be punished by imprisonment as provided for in subsections B through F of Section 20N of Title 21 of the Oklahoma Statutes. For the purposes of this paragraph, "prolonged knowledge" shall mean knowledge of at least six (6) months of child abuse or neglect.

D. 1. Any person who knowingly and willfully makes a false report pursuant to the provisions of this section or a report that the person knows lacks factual foundation may be reported to local law enforcement for criminal investigation and, upon conviction thereof, shall be guilty of a misdemeanor.

2. If a court determines that an accusation of child abuse or neglect made during a child custody proceeding is false and the

person making the accusation knew it to be false at the time the accusation was made, the court may impose a fine, not to exceed Five Thousand Dollars (\$5,000.00) and reasonable attorney fees incurred in recovering the sanctions, against the person making the accusation. The remedy provided by this paragraph is in addition to paragraph 1 of this subsection or to any other remedy provided by law.

E. Nothing contained in this section shall be construed to exempt or prohibit any person from reporting any suspected child abuse or neglect pursuant to subsection B of this section.

SECTION 2. REPEALER 10A O.S. 2021, Section 1-2-101, as amended by Section 1, Chapter 260, O.S.L. 2025 (10A O.S. Supp. 2025, Section 1-2-101), is hereby repealed.

SECTION 3. REPEALER 10A O.S. 2021, Section 1-2-101, as amended by Section 344, Chapter 486, O.S.L. 2025 (10A O.S. Supp. 2025, Section 1-2-101), is hereby repealed.

SECTION 4. AMENDATORY 21 O.S. 2021, Section 13.1, as last amended by Section 1, Chapter 162, O.S.L. 2025 (21 O.S. Supp. 2025, Section 13.1), is amended to read as follows:

Section 13.1. Persons convicted of:

1. First degree murder as provided for in Section 701.7 of this title;

2. Second degree murder as provided for in Section 701.8 of this title;

3. Manslaughter in the first degree as provided for in Section 711 of this title;

4. Poisoning with intent to kill as provided for in Section 651 of this title;

5. Shooting with intent to kill, use of a vehicle to facilitate use of a firearm, crossbow or other weapon, assault, battery, or assault and battery with a deadly weapon or by other means likely to

produce death or great bodily harm, as provided for in Sections 644 and 652 of this title;

6. Assault with intent to kill as provided for in Section 653 of this title;

7. Conjoint robbery as provided for in Section 800 of this title;

8. Robbery with a dangerous weapon as provided for in Section 801 of this title;

9. First degree robbery as provided for in Section 797 of this title;

10. First degree rape as provided for in Section 1111 or 1114 of this title;

11. First degree arson as provided for in Section 1401 of this title;

12. First degree burglary as provided for in Section 1431 of this title;

13. Bombing as provided for in Section 1767.1 of this title;

14. Any crime against a child as provided for in Section 843.5 of this title;

15. Forcible sodomy as provided for in Section 888 of this title;

16. Child sexual abuse material or aggravated child sexual abuse material as provided for in Section 1021.2, 1021.3, 1024.1, 1024.2, or 1040.12a of this title;

17. Child sex trafficking as defined in Section 1030 of this title;

18. Lewd molestation of a child as provided for in Section 1123 of this title;

19. Abuse of a vulnerable adult as defined in Section 10-103 of Title 43A of the Oklahoma Statutes;

20. Aggravated trafficking as provided for in subsection C of Section 2-415 of Title 63 of the Oklahoma Statutes;

21. Aggravated assault and battery as provided for in Section 646 of this title upon any person defending another person from assault and battery; ~~or~~

22. Human trafficking as defined in Section 748 of this title;

23. Accessory to murder in the first degree or accessory to murder in the second degree as provided for in Section 175 of this title; or

24. Discharging a firearm at or into a dwelling or building used for public or business purposes, as provided for in Section 1289.17A of this title,

or any attempt, conspiracy, or solicitation thereof, shall be required to serve not less than eighty-five percent (85%) of any sentence of imprisonment imposed by the judicial system prior to becoming eligible for consideration for parole. Persons convicted of these offenses shall not be eligible for earned credits or any other type of credits which have the effect of reducing the length of the sentence to less than eighty-five percent (85%) of the sentence imposed.

SECTION 5. REPEALER 21 O.S. 2021, Section 13.1, as amended by Section 5, Chapter 59, O.S.L. 2024 (21 O.S. Supp. 2025, Section 13.1), is hereby repealed.

SECTION 6. REPEALER 21 O.S. 2021, Section 13.1, as last amended by Section 2, Chapter 18, O.S.L. 2025 (21 O.S. Supp. 2025, Section 13.1), is hereby repealed.

SECTION 7. REPEALER 21 O.S. 2021, Section 13.1, as last amended by Section 1, Chapter 352, O.S.L. 2025 (21 O.S. Supp. 2025, Section 13.1), is hereby repealed.

SECTION 8. AMENDATORY 21 O.S. 2021, Section 425, as amended by Section 370, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 425), is amended to read as follows:

Section 425. A. Any person who engages in a pattern of criminal offenses in two or more counties or municipalities in this state or who attempts or conspires with others to engage in a pattern of criminal offenses shall, upon conviction, be guilty of a Class D1 felony offense punishable by imprisonment as provided for in subsections B through F of Section 20N of this title, or by a fine ~~in an amount~~ not more than Twenty-five Thousand Dollars (\$25,000.00), or by both such fine and imprisonment. Such punishment shall be in addition to any penalty imposed for any offense involved in the pattern of criminal offenses. Double jeopardy shall attach upon conviction.

B. For purposes of this ~~act~~ this section and Section 125.1 of Title 22 of the Oklahoma Statutes, "pattern of criminal offenses" means:

1. Two or more criminal offenses are committed that are part of the same plan, scheme, or adventure; ~~or~~

2. A sequence of two or more of the same criminal offenses are committed and are not separated by an interval of more than thirty (30) days between the first and second offense, the second and third, and so on; or

3. Two or more criminal offenses are committed, each proceeding from or having as an antecedent element a single prior incident or pattern of fraud, robbery, burglary, theft, identity theft, receipt of stolen property, false personation, false pretenses, obtaining property by trick or deception, taking a credit or debit card without consent, or the making, transferring, or receiving of a false or fraudulent identification card.

C. Jurisdiction and venue for a pattern of criminal offenses occurring in multiple counties in this state shall be determined as provided in Section ~~4~~ 125 of ~~this act~~ Title 22 of the Oklahoma Statutes.

SECTION 9. REPEALER 21 O.S. 2021, Section 425, as amended by Section 2, Chapter 329, O.S.L. 2025 (21 O.S. Supp. 2025, Section 425), is hereby repealed.

SECTION 10. AMENDATORY 21 O.S. 2021, Section 540A, as amended by Section 192, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 540A), is amended to read as follows:

Section 540A. A. Any operator of a motor vehicle who has received a visual and audible signal, a flashing red light, flashing red and blue lights, flashing blue and white lights, or any other combination of flashing red, blue, and white lights, and a siren from a peace officer driving a motor vehicle showing the same to be an official police, sheriff, highway patrol or state game ranger vehicle directing the operator to bring the vehicle to a stop and who willfully increases the speed or extinguishes the lights of the vehicle in an attempt to elude such peace officer, or willfully attempts in any other manner to elude the peace officer, or who does elude such peace officer, is guilty of a misdemeanor. The peace officer, while attempting to stop a violator of this section, may communicate a request for the assistance of other peace officers from any office, department or agency. Any peace officer within this state having knowledge of such request is authorized to render such assistance in stopping the violator and may effect an arrest under this section upon probable cause. Violation of this subsection shall constitute a misdemeanor and shall be punishable by not more than one (1) year imprisonment in the county jail or by a fine of not less than One Hundred Dollars (\$100.00) nor more than Two Thousand Dollars (\$2,000.00) or by both such fine and imprisonment. A second or subsequent violation of this subsection shall be punishable by not more than one (1) year in the county jail, or by a fine of not less than Five Hundred Dollars (\$500.00) nor more than Five Thousand Dollars (\$5,000.00) or both such fine and imprisonment.

B. Any person who violates the provisions of subsection A of this section in such manner as to endanger any other person shall be deemed guilty of a Class C1 felony offense punishable by imprisonment as provided for in subsections B through E of Section 20L of this title, or by a fine ~~of~~ not less than One Thousand Dollars (\$1,000.00) nor more than Five Thousand Dollars (\$5,000.00), or by both such fine and imprisonment.

C. 1. Any person who causes an accident, while eluding or attempting to elude an officer, resulting in great bodily injury to any other person while driving or operating a motor vehicle within this state and who is in violation of the provisions of subsection A of this section may be charged with a violation of the provisions of this subsection. Any person who is convicted of a violation of the provisions of this subsection shall be deemed guilty of a Class C1 felony offense punishable by imprisonment as provided for in subsections B through E of Section 20L of this title, and a fine of not more than Five Thousand Dollars (\$5,000.00).

2. As used in this subsection, "great bodily injury" means bodily injury which creates a substantial risk of death or which causes serious, permanent disfigurement or protracted loss or impairment of the function of any bodily member or organ.

SECTION 11. REPEALER 21 O.S. 2021, Section 540A, as amended by Section 1, Chapter 224, O.S.L. 2025 (21 O.S. Supp. 2025, Section 540A), is hereby repealed.

SECTION 12. AMENDATORY 21 O.S. 2021, Section 644, as last amended by Section 3, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 644), is amended to read as follows:

Section 644. A. Assault shall be punishable by imprisonment in a county jail not exceeding ninety (90) days, or by a fine not more than Five Hundred Dollars (\$500.00), or by both such fine and imprisonment.

B. Assault and battery shall be punishable by imprisonment in a county jail not exceeding six (6) months, or by a fine not more than One Thousand Dollars (\$1,000.00), or by both such fine and imprisonment.

C. Any person who commits any assault and battery against a current or former intimate partner or a family or household member as defined by Section 60.1 of Title 22 of the Oklahoma Statutes shall be guilty of domestic abuse. Upon conviction, the defendant shall be punished by imprisonment in the county jail for not more than one (1) year, or by a fine not exceeding Five Thousand Dollars (\$5,000.00), or by both such fine and imprisonment. Upon conviction

for a second or subsequent offense, the person shall be guilty of a Class B5 felony offense and shall be punished by imprisonment in the custody of the Department of Corrections for not more than four (4) years, or by a fine not exceeding Five Thousand Dollars (\$5,000.00), or by both such fine and imprisonment. The provisions of Section 51.1 of this title shall apply to any second or subsequent offense.

D. ~~1. Any person who, with intent to do bodily harm and without justifiable or excusable cause, commits any assault, battery, or assault and battery upon an intimate partner or a family or household member as defined by Section 60.1 of Title 22 of the Oklahoma Statutes with any sharp or dangerous weapon, upon conviction, is guilty of domestic assault or domestic assault and battery with a dangerous weapon which shall be a Class B3 felony offense punishable by imprisonment in the custody of the Department of Corrections not exceeding ten (10) years, or by imprisonment in a county jail not exceeding one (1) year. The provisions of Section 51.1 of this title shall apply to any second or subsequent conviction for a violation of this paragraph.~~

~~2. Any person who, with intent to do bodily harm and without such justifiable or excusable cause, shoots~~ commits any assault and battery upon an intimate partner or a family or household member as defined by Section 60.1 of Title 22 of the Oklahoma Statutes by means of any deadly weapon or by such other means or force that is likely to produce death shall, upon conviction, be guilty of domestic assault and battery with a deadly weapon which shall be a Class A3 felony offense punishable by imprisonment in the custody of the Department of Corrections not exceeding life. The provisions of Section 51.1 of this title shall apply to any second or subsequent conviction for a violation of this paragraph subsection.

E. 1. Any person convicted of domestic abuse committed against a pregnant woman with knowledge of the pregnancy shall be guilty of a Class B5 felony offense punishable by imprisonment in the custody of the Department of Corrections for not more than five (5) years.

2. Any person convicted of a second or subsequent offense of domestic abuse against a pregnant woman with knowledge of the pregnancy shall be guilty of a Class A3 felony offense punishable by imprisonment in the custody of the Department of Corrections for not less than ten (10) years.

3. Any person convicted of domestic abuse committed against a pregnant woman with knowledge of the pregnancy and a miscarriage occurs or injury to the unborn child occurs shall be guilty of a Class A1 felony offense punishable by imprisonment in the custody of the Department of Corrections for not less than twenty (20) years.

F. Any person convicted of domestic abuse as defined in subsection C of this section that results in great bodily injury to the victim shall be guilty of a Class B3 felony offense and punished by imprisonment in the custody of the Department of Corrections for not more than ten (10) years, or by imprisonment in the county jail for not more than one (1) year. The provisions of Section 51.1 of this title shall apply to any second or subsequent conviction of a violation of this subsection.

G. Any person convicted of domestic abuse as defined in subsection C of this section that was committed in the presence of a child shall be punished by imprisonment in the county jail for not less than six (6) months nor more than one (1) year, or by a fine not exceeding Five Thousand Dollars (\$5,000.00), or by both such fine and imprisonment. Any person convicted of a second or subsequent domestic abuse as defined in subsection C of this section that was committed in the presence of a child shall be guilty of a Class B5 felony offense and shall be punished by imprisonment in the custody of the Department of Corrections for not less than one (1) year nor more than five (5) years, or by a fine not exceeding Seven Thousand Dollars (\$7,000.00), or by both such fine and imprisonment. The provisions of Section 51.1 of this title shall apply to any second or subsequent offense. For every conviction of a domestic abuse crime in violation of any provision of this section committed against an intimate partner or a family or household member as defined by Section 60.1 of Title 22 of the Oklahoma Statutes, the court shall:

1. Specifically order as a condition of a suspended or deferred sentence that a defendant ~~participate in counseling or~~ undergo treatment to bring about the cessation of domestic abuse as specified in paragraph 2 of this subsection;

2. a. The court shall require the defendant to complete an assessment and follow the recommendations of a

batterers' intervention program to attend a fifty-two-week batterers' intervention program or a pilot batterers' intervention program, if available, certified by the Attorney General.

b. ~~If the defendant is ordered to participate~~
participates in a batterers' intervention program, the ~~order~~ program shall require the defendant to attend ~~the program~~ for a minimum of fifty-two (52) weeks, complete the program, and be evaluated before and after attendance of the program by program staff. Three unexcused absences in succession or seven unexcused absences in a period of fifty-two (52) weeks from any court-ordered batterers' intervention program shall be prima facie evidence of the violation of the conditions of probation for the district attorney to seek acceleration or revocation of any probation entered by the court.

c. To investigate the effectiveness of additional batterers' intervention models, the Attorney General, beginning February 1, 2026, may certify two pilot batterers' intervention programs for a period of thirty-six (36) months located in Oklahoma and Tulsa Counties. Proposals for certification as a pilot batterers' intervention program may be approved only if made by an organization that was dually certified as a batterers' intervention program and a domestic violence and sexual assault program on or before January 1, 2025, or by an organization certified as a batterers' intervention program on or before January 1, 2025, pursuant to a written agreement with an organization certified as a domestic violence and sexual assault program on or before January 1, 2025. Treatment provided through a pilot batterers' intervention program shall be evidence-based and shall be a minimum of twenty-six (26) weeks' duration. Participation in a pilot batterers' intervention program shall be limited to fifty participants at any given time. Pilot batterers' intervention programs shall be self-funded, including any fees which may be charged to the participants; provided, however, state

or federal funding may continue for domestic violence and sexual abuse programs.

- d. The Office of the Attorney General shall promulgate rules for pilot batterers' intervention programs in consultation with domestic violence and batterers' intervention programs or advocacy organizations.

The Attorney General shall establish within his or her administrative rules a screening and referral process to review referrals to the pilot batterers' intervention programs; provided, however, individuals convicted of domestic abuse with a dangerous weapon or domestic abuse by strangulation shall not be eligible to participate in the pilot program. The Attorney General shall require reporting of data necessary for evaluation of the pilot programs. The pilot programs shall provide the Attorney General with annual updates and at the end of a pilot program term, a formal evaluation shall be done by a third party agreed upon by the Attorney General and the pilot program operator.

- e. All participants in the pilot program shall be subject to a validated risk assessment conducted by a qualified professional. The results of the assessment shall be used to determine program placement based on the level of risk and individual circumstances. Participation in any shared or joint setting by both the survivor and the individual who has caused harm shall be prohibited under a pilot program. The Attorney General shall adopt rules to implement this subparagraph, including standards for risk assessment tools and differentiated response models.

- f. The Attorney General may provide by rule for extension of no more than twenty-four (24) months beyond thirty-six (36) months of a pilot batterers' intervention program if recommended by the third-party evaluator.

- g. Pilot batterers' intervention programs shall:

- (1) prioritize survivors' well-being in every part of the pilot program including screening, participation, reporting, and evaluation,
- (2) ensure that batterers' intervention programs use appropriate intervention strategies to assist the batterer in fostering the appropriate skills to:
 - (a) stop the violence committed by the batterer,
 - (b) accept personal accountability for battering and personal responsibility for the decision to stop or not to stop battering, and
 - (c) change the existing attitudes and beliefs of the batterer that support the coercive behavior of the batterer,
- (3) address all forms of battering,
- (4) be culturally informed and provide culturally appropriate services to all participants,
- (5) provide services that are affordable and accessible for participants, including participants with disabilities and limited English proficiency,
- (6) provide a uniform standard for evaluating the performance of a batterers' intervention program,
- (7) be informed by evidence-based practice, research, and proven field experience, including risk assessment, that enhances victim safety,
- (8) foster local and statewide communication and interaction between and among batterers' intervention programs and victim advocacy programs, and

(9) ensure that batterers' intervention programs operate as an integrated part of the wider community response to battering.

~~b.~~ h. A program for anger management, couples counseling, or family and marital counseling shall not solely qualify for the counseling or treatment requirement for domestic abuse pursuant to this subsection. The counseling may be ordered in addition to counseling specifically for the treatment of domestic abuse or per evaluation as set forth below. If, after sufficient evaluation and attendance at required ~~counseling~~ treatment sessions, the domestic violence treatment program or licensed professional determines that the defendant does not evaluate as a perpetrator of domestic violence or does evaluate as a perpetrator of domestic violence and should complete other programs of treatment simultaneously or prior to or subsequent to domestic violence treatment, including but not limited to programs related to the mental health, apparent substance or alcohol abuse or inability or refusal to manage anger, the defendant shall be ordered to complete the counseling as per the recommendations of the domestic violence treatment program or licensed professional;

3. a. The court shall set a review hearing no more than one hundred twenty (120) days after the defendant is ordered to participate in a domestic abuse counseling program or undergo treatment for domestic abuse to assure the attendance and compliance of the defendant with the provisions of this subsection and the domestic abuse counseling or treatment requirements. The court may ~~suspend~~ delay sentencing of the defendant until the defendant has presented proof to the court of enrollment in a program of treatment for domestic abuse by an individual licensed practitioner or a domestic abuse treatment program certified by the Attorney General and attendance at weekly sessions of such program. Such proof shall be presented to the court by the defendant no later than one hundred twenty (120) days after the defendant is ordered to

such counseling or treatment. At such time, the court may complete sentencing, beginning the period of the sentence from the date that proof of enrollment is presented to the court, and schedule reviews as required by subparagraphs a and b of this paragraph and paragraphs 4 and 5 of this subsection. Three unexcused absences in succession or seven unexcused absences in a period of fifty-two (52) weeks from any court-ordered domestic abuse counseling or treatment program shall be prima facie evidence of the violation of the conditions of probation for the district attorney to seek acceleration or revocation of any probation entered by the court.

- b. The court shall set a second review hearing after the completion of the counseling or treatment to assure the attendance and compliance of the defendant with the provisions of this subsection and the domestic abuse counseling or treatment requirements. The court shall retain continuing jurisdiction over the defendant during the course of ordered counseling through the final review hearing;

4. The court may set subsequent or other review hearings as the court determines necessary to assure the defendant attends and fully complies with the provisions of this subsection and the domestic abuse counseling or treatment requirements;

5. At any review hearing, if the defendant is not satisfactorily attending individual counseling or a domestic abuse counseling or treatment program or is not in compliance with any domestic abuse counseling or treatment requirements, the court may order the defendant to further or continue counseling, treatment, or other necessary services. The court may revoke all or any part of a suspended sentence, deferred sentence, or probation pursuant to Section 991b of Title 22 of the Oklahoma Statutes and subject the defendant to any or all remaining portions of the original sentence;

6. At the first review hearing, the court shall require the defendant to appear in court. Thereafter, for any subsequent review hearings, the court may accept a report on the progress of the defendant from individual counseling, domestic abuse counseling, or

the treatment program. There shall be no requirement for the victim to attend review hearings; and

7. If funding is available, a referee may be appointed and assigned by the presiding judge of the district court to hear designated cases set for review under this subsection. Reasonable compensation for the referees shall be fixed by the presiding judge. The referee shall meet the requirements and perform all duties in the same manner and procedure as set forth in Sections 1-8-103 and 2-2-702 of Title 10A of the Oklahoma Statutes pertaining to referees appointed in juvenile proceedings.

The defendant may be required to pay all or part of the cost of the counseling or treatment, in the discretion of the court.

H. As used in subsection G of this section, "in the presence of a child" means in the physical presence of a child; or having knowledge that a child is present and may see or hear an act of domestic violence. For the purposes of subsections C and G of this section, "child" may be any child whether or not related to the victim or the defendant.

I. For the purposes of subsections C and G of this section, any conviction for assault and battery against an intimate partner or a family or household member as defined by Section 60.1 of Title 22 of the Oklahoma Statutes shall constitute a sufficient basis for a felony charge:

1. If that conviction is rendered in any state, county or parish court of record of this or any other state; or

2. If that conviction is rendered in any municipal court of record of this or any other state for which any jail time was served; provided, no conviction in a municipal court of record entered prior to November 1, 1997, shall constitute a prior conviction for purposes of a felony charge.

J. Any person who commits any assault and battery by strangulation or attempted strangulation against an intimate partner or a family or household member as defined by Section 60.1 of Title 22 of the Oklahoma Statutes shall, upon conviction, be guilty of a Class B5 felony offense of domestic abuse by strangulation and shall

be punished by imprisonment in the custody of the Department of Corrections for a period not less than one (1) year nor more than ten (10) years, or by a fine not more than Twenty Thousand Dollars (\$20,000.00), or by both such fine and imprisonment. The provisions of Section 51.1 of this title shall apply to any second or subsequent conviction of a violation of this subsection. As used in this subsection, "strangulation" means any form of asphyxia; including, but not limited to, asphyxia characterized by closure of the blood vessels or air passages of the neck as a result of external pressure on the neck or the closure of the nostrils or mouth as a result of external pressure on the head.

K. Any district court of this state and any judge thereof shall be immune from any liability or prosecution for issuing an order that requires a defendant to:

1. Attend a treatment program for domestic abusers certified by the Attorney General;
2. Attend counseling or treatment services ordered as part of any suspended or deferred sentence or probation; and
3. Attend, complete, and be evaluated before and after attendance by a treatment program for domestic abusers, certified by the Attorney General.

L. There shall be no charge of fees or costs to any victim of domestic violence, stalking, or sexual assault in connection with the prosecution of a domestic violence, stalking, or sexual assault offense in this state.

M. In the course of prosecuting any charge of domestic abuse, stalking, harassment, rape, or violation of a protective order, the prosecutor shall provide the court, prior to sentencing or any plea agreement, a local history and any other available history of past convictions of the defendant within the last ten (10) years relating to domestic abuse, stalking, harassment, rape, violation of a protective order, or any other violent misdemeanor or felony convictions.

N. Any plea of guilty or finding of guilt for a violation of subsection C, F, G, I or J of this section shall constitute a

conviction of the offense for the purpose of this act or any other criminal statute under which the existence of a prior conviction is relevant for a period of ten (10) years following the completion of any court imposed probationary term; provided, the person has not, in the meantime, been convicted of a misdemeanor involving moral turpitude or a felony.

O. For purposes of subsection F of this section, "great bodily injury" means bone fracture, protracted and obvious disfigurement, protracted loss or impairment of the function of a body part, organ or mental faculty, or substantial risk of death.

P. Any pleas of guilty or nolo contendere or finding of guilt to a violation of any provision of this section shall constitute a conviction of the offense for the purpose of any subsection of this section under which the existence of a prior conviction is relevant for a period of ten (10) years following the completion of any sentence or court imposed probationary term.

SECTION 13. REPEALER 21 O.S. 2021, Section 644, as last amended by Section 1, Chapter 147, O.S.L. 2025 (21 O.S. Supp. 2025, Section 644), is hereby repealed.

SECTION 14. REPEALER 21 O.S. 2021, Section 644, as last amended by Section 1, Chapter 322, O.S.L. 2025 (21 O.S. Supp. 2025, Section 644), is hereby repealed.

SECTION 15. REPEALER 21 O.S. 2021, Section 644, as last amended by Section 2, Chapter 162, O.S.L. 2025 (21 O.S. Supp. 2025, Section 644), is hereby repealed.

SECTION 16. AMENDATORY 21 O.S. 2021, Section 650, as amended by Section 16, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 650), is amended to read as follows:

Section 650. A. Every person who, without justifiable or excusable cause, knowingly commits any aggravated assault and battery upon the person of a police officer, sheriff, deputy sheriff or highway patrolman, corrections personnel as defined in Section 649 of this title, or any state peace officer employed by any state or federal governmental agency to enforce state laws, while the officer is in the performance of his or her duties shall, upon

conviction ~~thereof~~, be guilty of a Class A3 felony offense, ~~which shall be~~ punishable by imprisonment in the custody of the Department of Corrections for not more than life ~~or by~~, a fine not exceeding One Thousand Dollars (\$1,000.00), or by both such fine and imprisonment.

B. Every person who, without justifiable or excusable cause, commits any aggravated assault and battery upon a person that the violator knows or should reasonably know is a police officer, sheriff, deputy sheriff ~~or~~, highway patrolman, corrections personnel as defined in Section 649 of this title, or any state peace officer employed by any state or federal governmental agency to enforce state laws, that results in maiming as defined in Section 751 of this title, while the officer is in the performance of his or her duties shall, upon conviction, be guilty of a Class A2 felony offense punishable by imprisonment in the custody of the Department of Corrections ~~of~~ for not less than five (5) years nor more than life, or by a fine not exceeding Five Thousand Dollars (\$5,000.00), or by both such fine and imprisonment.

C. For purposes of this section, aggravated assault and battery upon law officers includes ~~the~~:

1. The physical contact with and ~~in~~ an attempt to gain control of the firearm; or

2. The strangulation,

of any police officer, sheriff, deputy sheriff, highway patrolman, corrections personnel as defined in Section 649 of this title, or any peace officer employed by any state or federal governmental agency to enforce state laws. As used in this subsection, "strangulation" shall have the same meaning as provided in subsection J of Section 644 of this title.

D. This section shall not supersede any other act or acts, but shall be cumulative thereto.

SECTION 17. REPEALER 21 O.S. 2021, Section 650, as amended by Section 1, Chapter 32, O.S.L. 2025 (21 O.S. Supp. 2025, Section 650), is hereby repealed.

SECTION 18. AMENDATORY 21 O.S. 2021, Section 748, as last amended by Section 20, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 748), is amended to read as follows:

Section 748. A. As used in Sections 748 and 748.2 of this title:

1. "Coercion" means compelling, forcing or intimidating a person to act by:
 - a. threats of harm or physical restraint against any person,
 - b. any act, scheme, plan, or pattern intended to cause a person to believe that performing, or failing to perform, an act would result in serious physical, financial, or emotional harm or distress to or physical restraint against any person,
 - c. the abuse or threatened abuse of the law or legal process,
 - d. knowingly destroying, concealing, removing, confiscating or possessing any actual or purported passport, labor or immigration document, or other government identification document, including but not limited to a driver license or birth certificate, of another person,
 - e. facilitating or controlling a person's access to any addictive or controlled substance other than for legal medical purposes,
 - f. blackmail,
 - g. demanding or claiming money, goods, or any other thing of value from or on behalf of a prostituted person where such demand or claim arises from or is directly related to the act of prostitution,

- h. determining, dictating or setting the times at which another person will be available to engage in an act of prostitution with a third party,
- i. determining, dictating or setting the places at which another person will be available for solicitation of, or to engage in, an act of prostitution with a third party, or
- j. determining, dictating or setting the places at which another person will reside for purposes of making such person available to engage in an act of prostitution with a third party;

2. "Commercial sex" means any form of commercial sexual activity such as sexually explicit performances, prostitution, participation in the production of pornography, performance in a strip club, or exotic dancing or display;

3. "Debt bondage" means the status or condition of a debtor arising from a pledge by the debtor of his or her personal services or of those of a person under his or her control as a security for debt if the value of those services as reasonably assessed is not applied toward the liquidation of the debt or the length and nature of those services are not respectively limited and defined;

4. "Human trafficking" means modern-day slavery that includes, but is not limited to, extreme exploitation and the denial of freedom or liberty of an individual for purposes of deriving benefit from that individual's commercial sex act or labor;

5. "Human trafficking for labor" means:

- a. recruiting, enticing, harboring, maintaining, transporting, providing or obtaining, by any means, another person through deception, force, fraud, threat or coercion or for purposes of engaging the person in labor, or
- b. benefiting, financially or by receiving anything of value, from participation in a venture that has engaged in an act of trafficking for labor;

6. "Human trafficking for commercial sex" means:

- a. recruiting, enticing, harboring, maintaining, transporting, providing or obtaining, by any means, another person through deception, force, fraud, threat or coercion for purposes of engaging the person in a commercial sex act,
- b. recruiting, enticing, harboring, maintaining, transporting, providing, purchasing or obtaining, by any means, a minor for purposes of engaging the minor in a commercial sex act, or
- c. benefiting, financially or by receiving anything of value, from participating in a venture that has engaged in an act of trafficking for commercial sex;

7. "Legal process" means the criminal law, the civil law, or the regulatory system of the federal government, any state, territory, district, commonwealth, or trust territory therein, and any foreign government or subdivision thereof and includes legal civil actions, criminal actions, and regulatory petitions or applications;

8. "Minor" means an individual under eighteen (18) years of age; and

9. "Victim" means a person against whom a violation of any provision of this section has been committed.

B. It shall be unlawful to knowingly engage in human trafficking.

C. 1. Any person violating the provisions of this section shall, upon conviction, be guilty of a Class A2 felony offense punishable by imprisonment in the custody of the Department of Corrections for a term of not less than five (5) years or for life, or by a fine of not more than One Hundred Thousand Dollars (\$100,000.00), or by both such fine and imprisonment.

2. Any person violating the provisions of this section where the victim of the offense is under eighteen (18) years of age at the time of the offense shall, upon conviction, be guilty of a Class A2 felony offense punishable by imprisonment in the custody of the Department of Corrections for a term of not less than ~~fifteen (15)~~ ten (10) years or, for life, or for life without parole, or by a fine of not more than Two Hundred Fifty Thousand Dollars (\$250,000.00), or by both such fine and imprisonment.

3. The court shall also order the defendant to pay restitution to the victim as provided in Section 991f of Title 22 of the Oklahoma Statutes. In addition, the court shall require the defendant to pay for a psychological evaluation to determine the extent of counseling necessary for the human trafficking victim and any necessary psychological counseling deemed necessary to rehabilitate the victim. Such evaluations and counseling may be performed by psychiatrists, psychologists, licensed professional counselors, or social workers.

4. If the person is convicted of human trafficking, the person shall serve eighty-five percent (85%) of the sentence before being eligible for parole consideration or any earned credits. The terms of imprisonment specified in this subsection shall not be subject to statutory provisions for suspension, deferral or probation, or state correctional institution earned credits accruing from and after November 1, 1989, except for the achievement earned credits authorized by subsection H of Section 138 of Title 57 of the Oklahoma Statutes. To qualify for such achievement earned credits, such inmates must also be in compliance with the standards for Class level 2 behavior, as defined in subsection D of Section 138 of Title 57 of the Oklahoma Statutes.

D. It is an affirmative defense to prosecution for a criminal, youthful offender, or delinquent offense that, during the time of the alleged commission of the offense, the defendant or alleged youthful offender or delinquent was a victim of human trafficking.

E. The consent of a victim to the activity prohibited by this section shall not constitute a defense.

F. Lack of knowledge of the age of the victim shall not constitute a defense to the activity prohibited by this section with respect to human trafficking of a minor.

SECTION 19. REPEALER 21 O.S. 2021, Section 748, as last amended by Section 2, Chapter 291, O.S.L. 2025 (21 O.S. Supp. 2025, Section 748), is hereby repealed.

SECTION 20. AMENDATORY 21 O.S. 2021, Section 843.5, as last amended by Section 8, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 843.5), is amended to read as follows:

Section 843.5. A. Any person who shall willfully or maliciously engage in child abuse, as defined in this section, shall, upon conviction, be guilty of a Class A3 felony offense punishable by imprisonment in the custody of the Department of Corrections not exceeding life imprisonment, or by imprisonment in a county jail not exceeding one (1) year, or by a fine of not less than Five Hundred Dollars (\$500.00) nor more than Five Thousand Dollars (\$5,000.00), or both such fine and imprisonment.

B. Any person responsible for the health, safety or welfare of a child who shall willfully or maliciously engage in enabling child abuse, as defined in this section, shall, upon conviction, be guilty of a Class A3 felony offense and shall be punished by imprisonment in the custody of the Department of Corrections not exceeding life imprisonment, or by imprisonment in a county jail not exceeding one (1) year, or by a fine of not less than Five Hundred Dollars (\$500.00) nor more than Five Thousand Dollars (\$5,000.00), or both such fine and imprisonment.

C. Any person responsible for the health, safety or welfare of a child who shall willfully or maliciously engage in child neglect, as defined in this section, shall, upon conviction, be guilty of a Class B1 felony offense and shall be punished by imprisonment in the custody of the Department of Corrections not exceeding life imprisonment, or by imprisonment in a county jail not exceeding one (1) year, or by a fine of not less than Five Hundred Dollars (\$500.00) nor more than Five Thousand Dollars (\$5,000.00), or both such fine and imprisonment.

D. Any parent or other person who shall willfully or maliciously engage in enabling child neglect shall, upon conviction, be guilty of a Class B1 felony offense and shall be punished by imprisonment in the custody of the Department of Corrections not exceeding life imprisonment, or by imprisonment in a county jail not exceeding one (1) year, or by a fine of not less than Five Hundred Dollars (\$500.00) nor more than Five Thousand Dollars (\$5,000.00), or both such fine and imprisonment.

E. Any person responsible for the health, safety or welfare of a child who shall willfully or maliciously engage in child sexual abuse, as defined in this section, shall, upon conviction, be guilty of a Class A3 felony offense and shall be punished by imprisonment in the custody of the Department of Corrections not exceeding life imprisonment, or by imprisonment in a county jail not exceeding one (1) year, or by a fine of not less than Five Hundred Dollars (\$500.00) nor more than Five Thousand Dollars (\$5,000.00), or both such fine and imprisonment, except as provided in Section 51.1a of this title or as otherwise provided in subsection F of this section for a child victim under twelve (12) years of age. Except for persons sentenced to life or life without parole, any person sentenced to imprisonment for two (2) years or more for a violation of this subsection shall be required to serve a term of post-imprisonment supervision pursuant to subparagraph f of paragraph 1 of subsection A of Section 991a of Title 22 of the Oklahoma Statutes under conditions determined by the Department of Corrections. The jury shall be advised that the mandatory post-imprisonment supervision shall be in addition to the actual imprisonment.

F. Any person responsible for the health, safety or welfare of a child who shall willfully or maliciously engage in child sexual abuse, as defined in this section, to a child under twelve (12) years of age shall, upon conviction, be guilty of a Class A1 felony offense and shall be punished by imprisonment in the custody of the Department of Corrections for not less than twenty-five (25) years nor more than life imprisonment, and by a fine of not less than Five Hundred Dollars (\$500.00) nor more than Five Thousand Dollars (\$5,000.00).

G. Any parent or other person who shall willfully or maliciously engage in enabling child sexual abuse shall, upon conviction, be guilty of a Class A3 felony offense and shall be

punished by imprisonment in the custody of the Department of Corrections not exceeding life imprisonment, or by imprisonment in a county jail not exceeding one (1) year, or by a fine of not less than Five Hundred Dollars (\$500.00) nor more than Five Thousand Dollars (\$5,000.00), or both such fine and imprisonment.

H. Any person who shall willfully or maliciously engage in child sexual exploitation, as defined in this section, shall, upon conviction, be guilty of a Class A3 felony offense and shall be punished by imprisonment in the custody of the Department of Corrections not exceeding life imprisonment, or by imprisonment in a county jail not exceeding one (1) year, or by a fine of not less than Five Hundred Dollars (\$500.00) nor more than Five Thousand Dollars (\$5,000.00), or both such fine and imprisonment, except as provided in subsection I of this section for a child victim under twelve (12) years of age. Except for persons sentenced to life or life without parole, any person sentenced to imprisonment for two (2) years or more for a violation of this subsection shall be required to serve a term of post-imprisonment supervision pursuant to subparagraph f of paragraph 1 of subsection A of Section 991a of Title 22 of the Oklahoma Statutes under conditions determined by the Department of Corrections. The jury shall be advised that the mandatory post-imprisonment supervision shall be in addition to the actual imprisonment.

I. Any person who shall willfully or maliciously engage in child sexual exploitation, as defined in this section, of a child under twelve (12) years of age shall, upon conviction, be guilty of a Class A1 felony offense and shall be punished by imprisonment in the custody of the Department of Corrections for not less than twenty-five (25) years nor more than life imprisonment, and by a fine of not less than Five Hundred Dollars (\$500.00) nor more than Five Thousand Dollars (\$5,000.00).

J. Any person responsible for the health, safety or welfare of a child who shall willfully or maliciously engage in enabling child sexual exploitation, as defined in this section, shall, upon conviction, be guilty of a Class A3 felony offense and shall be punished by imprisonment in the custody of the Department of Corrections not exceeding life imprisonment, or by imprisonment in a county jail not exceeding one (1) year, or by a fine of not less

than Five Hundred Dollars (\$500.00) nor more than Five Thousand Dollars (\$5,000.00), or both such fine and imprisonment.

K. ~~Notwithstanding~~ In addition to any other ~~provision of punishment prescribed by law,~~ any person convicted of forcible anal or oral sodomy, rape, or rape by instrumentation, ~~or lewd molestation of a child under fourteen (14) years of age subsequent to a previous conviction for any offense of forcible anal or oral sodomy, rape, rape by instrumentation, or lewd molestation of a child under fourteen (14) years of age~~ shall be guilty of a Class A1 felony offense and shall be ~~punished~~ eligible for punishment by death or by imprisonment for life without parole.

L. Provided, however, that nothing contained in this section shall prohibit any parent or guardian from using reasonable and ordinary force pursuant to Section 844 of this title.

M. Consent shall not be a defense for any violation provided for in this section.

N. Notwithstanding the age requirements of other statutes referenced within this section, this section shall apply to any child under eighteen (18) years of age.

O. As used in this section:

1. "Child abuse" means:

- a. the willful or malicious harm or threatened harm or failure to protect from harm or threatened harm to the health, safety or welfare of a child under eighteen (18) years of age by a person responsible for a child's health, safety or welfare, or
- b. the act of willfully or maliciously injuring, torturing or maiming a child under eighteen (18) years of age by any person;

2. "Child neglect" means the willful or malicious neglect, as defined by Section 1-1-105 of Title 10A of the Oklahoma Statutes, of a child under eighteen (18) years of age by a person responsible for a child's health, safety or welfare;

3. "Child sexual abuse" means the willful or malicious sexual abuse of a child under eighteen (18) years of age by a person responsible for a child's health, safety or welfare and includes, but is not limited to:

- a. sexual intercourse,
- b. penetration of the vagina or anus, however slight, by an inanimate object or any part of the human body not amounting to sexual intercourse,
- c. sodomy,
- d. incest, or
- e. a lewd act or proposal, as defined in this section;

4. "Child sexual exploitation" means the willful or malicious sexual exploitation of a child under eighteen (18) years of age by another and includes, but is not limited to:

- a. human trafficking, as provided for in Section 748 of this title, if the offense involved child trafficking for commercial sex,
- b. trafficking in children, as provided for in Section 866 of this title, if the offense was committed for the sexual gratification of any person,
- c. procuring or causing the participation of a minor in child ~~pornography~~ sexual abuse material, as provided for in Section 1021.2 of this title,
- d. purchase, procurement or possession of child ~~pornography~~ sexual abuse material, as provided for in Section 1024.2 of this title,
- e. engaging in or soliciting prostitution, as provided for in Section 1029 of this title, if the offense involved child sex trafficking,

- f. publication, distribution or participation in the preparation of obscene material, as provided for in Section 1040.8 of this title, if the offense involved child ~~pornography~~ sexual abuse material,
- g. aggravated possession of child ~~pornography~~ sexual abuse material, as provided for in Section 1040.12a of this title,
- h. sale or distribution of obscene material, as provided for in Section 1040.13 of this title,
- i. soliciting sexual conduct or communication with a minor by use of technology, as provided for in Section 1040.13a of this title,
- j. offering or transporting a child for purposes of child sex trafficking, as provided for in Section 1087 of this title, and
- k. child sex trafficking, as provided for in Section 1088 of this title;

5. "Enabling child abuse" means the causing, procuring or permitting of child abuse by a person responsible for a child's health, safety or welfare;

6. "Enabling child neglect" means the causing, procuring or permitting of child neglect by a person responsible for a child's health, safety or welfare;

7. "Enabling child sexual abuse" means the causing, procuring or permitting of child sexual abuse by a person responsible for a child's health, safety or welfare;

8. "Enabling child sexual exploitation" means the causing, procuring or permitting of child sexual exploitation by a person responsible for a child's health, safety or welfare;

9. "Incest" means marrying, committing adultery or fornicating with a child by a person responsible for the health, safety or welfare of a child;

10. "Lewd act or proposal" means:

- a. making any oral, written or electronic or computer-generated lewd or indecent proposal to a child for the child to have unlawful sexual relations or sexual intercourse with any person,
- b. looking upon, touching, mauling or feeling the body or private parts of a child in a lewd or lascivious manner or for the purpose of sexual gratification,
- c. asking, inviting, enticing or persuading any child to go alone with any person to a secluded, remote or secret place for a lewd or lascivious purpose,
- d. urinating or defecating upon a child or causing, forcing or requiring a child to defecate or urinate upon the body or private parts of another person for the purpose of sexual gratification,
- e. ejaculating upon or in the presence of a child,
- f. causing, exposing, forcing or requiring a child to look upon the body or private parts of another person for the purpose of sexual gratification,
- g. causing, forcing or requiring any child to view any obscene materials, child ~~pornography~~ sexual abuse material or materials deemed harmful to minors as such terms are defined in Sections 1024.1 and 1040.75 of this title,
- h. causing, exposing, forcing or requiring a child to look upon sexual acts performed in the presence of the child for the purpose of sexual gratification, or
- i. causing, forcing or requiring a child to touch or feel the body or private parts of the child or another person for the purpose of sexual gratification;

11. "Permit" means to authorize or allow for the care of a child by an individual when the person authorizing or allowing such care knows or reasonably should know that the child will be placed at risk of the conduct or harm proscribed by this section;

12. "Person responsible for a child's health, safety or welfare" for purposes of this section shall include, but not be limited to:

- a. the parent of the child,
- b. the legal guardian of the child,
- c. the custodian of the child,
- d. the foster parent of the child,
- e. a person eighteen (18) years of age or older with whom the parent of the child cohabitates, who is at least three (3) years older than the child,
- f. any other person eighteen (18) years of age or older residing in the home of the child, who is at least three (3) years older than the child,
- g. an owner, operator, agent, employee or volunteer of a public or private residential home, institution, facility or day treatment program, as defined in Section 175.20 of Title 10 of the Oklahoma Statutes, that the child attended,
- h. an owner, operator, agent, employee or volunteer of a child care facility, as defined in Section 402 of Title 10 of the Oklahoma Statutes, that the child attended,
- i. an intimate partner of the parent of the child, as defined in Section 60.1 of Title 22 of the Oklahoma Statutes, or
- j. a person who has voluntarily accepted responsibility for the care or supervision of a child;

13. "Sexual intercourse" means the actual penetration, however slight, of the vagina or anus by the penis; and

14. "Sodomy" means:

- a. penetration, however slight, of the mouth of the child by a penis,
- b. penetration, however slight, of the vagina of a person responsible for a child's health, safety or welfare, by the mouth of a child,
- c. penetration, however slight, of the mouth of the person responsible for a child's health, safety or welfare by the penis of the child, or
- d. penetration, however slight, of the vagina of the child by the mouth of the person responsible for a child's health, safety or welfare.

SECTION 21. REPEALER 21 O.S. 2021, Section 843.5, as amended by Section 6, Chapter 59, O.S.L. 2024 (21 O.S. Supp. 2025, Section 843.5), is hereby repealed.

SECTION 22. REPEALER 21 O.S. 2021, Section 843.5, as last amended by Section 1, Chapter 281, O.S.L. 2025 (21 O.S. Supp. 2025, Section 843.5), is hereby repealed.

SECTION 23. AMENDATORY 21 O.S. 2021, Section 852.1, as amended by Section 187, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 852.1), is amended to read as follows:

Section 852.1. A. A person who is the parent, guardian, or person having custody or control over a child as defined in Section 1-1-105 of Title 10A of the Oklahoma Statutes, commits child endangerment when the person:

1. Knowingly permits physical or sexual abuse of a child;
2. Knowingly permits a child to be present at a location where a controlled dangerous substance is being manufactured or attempted

to be manufactured as defined in Section 2-101 of Title 63 of the Oklahoma Statutes;

3. Knowingly permits a child to be present in a vehicle when the person knows or should have known that the operator of the vehicle is impaired by or is under the influence of alcohol or another intoxicating substance; or

4. Is the driver, operator, or person in physical control of a vehicle in violation of Section 11-902 of Title 47 of the Oklahoma Statutes or impaired while transporting or having in the vehicle such child or children.

However, it is an affirmative defense to this paragraph if the person had a reasonable apprehension that any action to stop the physical or sexual abuse or deny permission for the child to be in the vehicle with an intoxicated person would result in substantial bodily harm to the person or the child.

Nothing in this subsection shall prohibit the prosecution of a person pursuant to the provisions of Section 11-902 or 11-904 of Title 47 of the Oklahoma Statutes.

B. The provisions of this section shall not apply to any parent, guardian or other person having custody or control of a child for the sole reason that the parent, guardian or other person in good faith selects and depends upon spiritual means or prayer for the treatment or cure of disease or remedial care for such child. This subsection shall in no way limit or modify the protections afforded said child in Section 852 of this title or Section 1-4-904 of Title 10A of the Oklahoma Statutes.

C. Any person convicted of violating any provision of this section shall be guilty of a Class B6 felony offense punishable by imprisonment in the custody of the Department of Corrections for a term of not more than four (4) years, or by a fine not exceeding Five Thousand Dollars (\$5,000.00), or by both such fine and imprisonment.

SECTION 24. REPEALER 21 O.S. 2021, Section 852.1, as amended by Section 1, Chapter 113, O.S.L. 2025 (21 O.S. Supp. 2025, Section 852.1), is hereby repealed.

SECTION 25. AMENDATORY 21 O.S. 2021, Section 856.3, as amended by Section 159, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 856.3), is amended to read as follows:

Section 856.3. Any person who attempts or commits a gang-related offense as a condition of membership in a criminal street gang or while in association with any criminal street gang or gang member shall be guilty of a Class B5 felony offense. ~~Upon punishable upon conviction, the violator shall be punished by incarceration~~ imprisonment in the custody of the Department of Corrections for a term of five (5) years, which shall be in addition to any other penalty imposed. For purposes of this section, "criminal street gang" is defined by subsection F of Section 856 of ~~Title 21 of the Oklahoma Statutes~~ this title and "gang-related offense" means those offenses enumerated in ~~paragraphs 1 through 16 of subsection F of Section 856 of Title 21 of the Oklahoma Statutes~~ this title.

SECTION 26. REPEALER 21 O.S. 2021, Section 856.3, as amended by Section 1, Chapter 108, O.S.L. 2025 (21 O.S. Supp. 2025, Section 856.3), is hereby repealed.

SECTION 27. REPEALER 21 O.S. 2021, Section 888, as amended by Section 4, Chapter 455, O.S.L. 2002, is hereby repealed.

SECTION 28. AMENDATORY 21 O.S. 2021, Section 1021.2, as last amended by Section 49, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1021.2), is amended to read as follows:

Section 1021.2. A. Any person who shall procure or cause the participation of any minor under the age of eighteen (18) years in any child ~~pornography~~ sexual abuse material or obscene material or who knowingly possesses, views, accesses, shares, streams, downloads, procures, sells, distributes, or manufactures, or causes to be possessed, viewed, accessed, shared, streamed, downloaded, procured, sold, distributed, or manufactured any child ~~pornography~~ sexual abuse material shall, upon conviction, be guilty of a Class B1 felony offense and shall be punished by imprisonment in the custody of the Department of Corrections for not more than twenty (20) years and by the imposition of a fine of not more than Twenty-five Thousand Dollars (\$25,000.00). Persons convicted under this

section shall not be eligible for a deferred sentence. Except for persons sentenced to life or life without parole, any person sentenced to imprisonment for two (2) years or more for a violation of this subsection shall be required to serve a term of post-imprisonment supervision pursuant to subparagraph f of paragraph 1 of subsection A of Section 991a of Title 22 of the Oklahoma Statutes under conditions determined by the Department of Corrections. The jury shall be advised that the mandatory post-imprisonment supervision shall be in addition to the actual imprisonment.

B. The consent of the minor, or of the mother, father, legal guardian, or custodian of the minor to the activity prohibited by this section shall not constitute a defense.

SECTION 29. REPEALER 21 O.S. 2021, Section 1021.2, as amended by Section 9, Chapter 59, O.S.L. 2024 (21 O.S. Supp. 2025, Section 1021.2), is hereby repealed.

SECTION 30. AMENDATORY 21 O.S. 2021, Section 1024.1, as last amended by Section 4, Chapter 29, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1024.1), is amended to read as follows:

Section 1024.1. A. As used in Sections 1021, 1021.1 through 1021.4, Sections 1022, 1023, and Sections 1040.8 through 1040.24 of this title, "child sexual abuse material" means:

1. Any visual depiction of a child engaged in any act of sexually explicit conduct;

2. Any visual depiction of a child that has been adapted, altered, or modified so that the child depicted appears to be engaged in any act of sexually explicit conduct; or

3. Any visual depiction that appears to be a child, regardless of whether the image is a depiction of an actual child, a computer-generated image, or an image altered to appear to be a child, engaged in any act of sexually explicit conduct, and such visual depiction is obscene.

B. Each visual depiction or individual image of child ~~pornography~~ sexual abuse material shall constitute a separate item and act.

C. As used in Sections 1021 through 1024.4 and Sections 1040.8 through 1040.24 of this title:

1. "Child" means a person under eighteen (18) years of age;

2. "Obscene" means any performance or depiction, in any form or on any medium, if the material when taken as a whole:

- a. appeals to the prurient interest in sex as determined by the average person applying the contemporary standards of their community,
- b. depicts, represents, or displays sexually explicit conduct in a patently offensive way, and
- c. a reasonable person would find the material or performance lacks serious literary, artistic, educational, political, or scientific value;

3. "Performance" means any display, live, recorded, or transmitted, in any form or medium;

4. "Sexually explicit conduct" means any of the following whether actual or simulated:

- a. acts of sexual intercourse,
- b. acts of oral and anal sodomy,
- c. acts of masturbation,
- d. acts of sexual activity with an animal,
- e. acts of sadomasochism including:
 - (1) flagellation or torture by or upon any person who is nude or clad in undergarments or in a costume which is of a revealing nature, or

(2) the condition of being fettered, bound, or otherwise physically restrained on the part of one who is nude or so clothed,

f. acts of excretion in a sexual context, or

g. exhibiting genitalia, breast, or pubic area for the purpose of the sexual stimulation of the viewer;

5. "Explicit child sexual abuse material" means material which a law enforcement officer can immediately identify as child sexual abuse material; and

6. "Visual depiction" means any depiction, picture, movie, performance, or image displayed, stored, shared, or transmitted in any format and on any medium including data that is capable of being converted into a depiction, picture, movie, performance, or image.

SECTION 31. REPEALER 21 O.S. 2021, Section 1024.1, as amended by Section 14, Chapter 59, O.S.L. 2024 (21 O.S. Supp. 2025, Section 1024.1), is hereby repealed.

SECTION 32. AMENDATORY 21 O.S. 2021, Section 1031, as last amended by Section 397, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1031), is amended to read as follows:

Section 1031. A. Except as provided in subsection B, C, D, or E of this section, any person violating any of the provisions of paragraph 1, 2, 3, or 5 of subsection A of Section 1029 or Section 1030 of this title shall, upon conviction, be guilty of a misdemeanor and shall be punished by imprisonment in the county jail for not less than thirty (30) days nor more than one (1) year or by fines as follows: a fine not more than Two Thousand Five Hundred Dollars (\$2,500.00) upon the first conviction for violation of any of such provisions, a fine not more than Five Thousand Dollars (\$5,000.00) upon the second conviction for violation of any of such provisions, and a fine not more than Seven Thousand Five Hundred Dollars (\$7,500.00) upon the third or subsequent convictions for violation of any of such provisions, or by both such imprisonment and fine. In addition, the court may require a term of community service not less than forty (40) nor more than eighty (80) hours.

The court in which any such conviction is had shall notify the county superintendent of public health of such conviction.

B. Any person who engages in an act of prostitution with knowledge that he or she is infected with the human immunodeficiency virus shall, upon conviction, be guilty of a Class D1 felony offense punishable by imprisonment as provided for in subsections B through F of Section 20N of this title.

C. Any person who engages in an act of child ~~prostitution~~ sex trafficking as defined in Section 1030 of this title shall, upon conviction, be guilty of a Class B1 felony offense punishable by imprisonment in the custody of the Department of Corrections for not more than ten (10) years and by fines as follows: a fine not more than Five Thousand Dollars (\$5,000.00) upon the first conviction, a fine not more than Ten Thousand Dollars (\$10,000.00) upon the second conviction, and a fine not more than Fifteen Thousand Dollars (\$15,000.00) upon the third or subsequent convictions.

D. Any person violating any of the provisions of Section 1029 or 1030 of this title within one thousand (1,000) feet of a school or church shall, upon conviction, be guilty of a Class D1 felony offense and shall be punished by imprisonment as provided for in subsections B through F of Section 20N of this title, or by fines as follows: a fine not more than Two Thousand Five Hundred Dollars (\$2,500.00) upon the first conviction for violation of any of such provisions, a fine not more than Five Thousand Dollars (\$5,000.00) upon the second conviction for violation of any of such provisions, and a fine not more than Seven Thousand Five Hundred Dollars (\$7,500.00) upon the third or subsequent convictions for violation of any of such provisions, or by both such imprisonment and fine. In addition, the court may require a term of community service not less than forty (40) nor more than eighty (80) hours. The court in which any such conviction is had shall notify the county superintendent of public health of such conviction.

E. Any person violating paragraph 4 of subsection A of Section 1029 of this title shall, upon conviction, be guilty of a Class B4 felony offense and shall be punished in accordance with the provisions of subsection B of Section 1040.57 of this title.

SECTION 33. REPEALER 21 O.S. 2021, Section 1031, as last amended by Section 5, Chapter 151, O.S.L. 2024 (21 O.S. Supp. 2025, Section 1031), is hereby repealed.

SECTION 34. AMENDATORY 21 O.S. 2021, Section 1040.12a, as last amended by Section 26, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1040.12a), is amended to read as follows:

Section 1040.12a. A. Any person who, with knowledge of its contents, possesses one hundred (100) or more separate visual depictions of child ~~pornography~~ sexual abuse material shall, upon conviction, be guilty of aggravated possession of child ~~pornography~~ sexual abuse material, a Class A2 felony offense. The violator shall be punished by imprisonment in the custody of the Department of Corrections for a term not exceeding life imprisonment and by a fine in an amount of not more than Ten Thousand Dollars (\$10,000.00). The violator, upon conviction, shall be required to register as a sex offender under the Sex Offenders Registration Act.

B. For purposes of this section:

1. Multiple copies of the same identical material shall each be counted as a separate item; and

2. The terms "child ~~pornography~~" sexual abuse material" and "visual depictions" mean the same definitions provided by Section 1024.1 of this title.

SECTION 35. REPEALER 21 O.S. 2021, Section 1040.12a, as amended by Section 20, Chapter 59, O.S.L. 2024 (21 O.S. Supp. 2025, Section 1040.12a), is hereby repealed.

SECTION 36. REPEALER 21 O.S. 2021, Section 1040.12a, as last amended by Section 3, Chapter 29, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1040.12a), is hereby repealed.

SECTION 37. AMENDATORY 21 O.S. 2021, Section 1040.13b, as last amended by Section 1, Chapter 23, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1040.13b), is amended to read as follows:

Section 1040.13b. A. As used in this section:

1. "Artificial intelligence" means a machine-based system that can, for a given set of human-defined objectives, make predictions, recommendations, or decisions influencing real or virtual environments, including the ability to:

- a. perceive real and virtual environments,
- b. abstract perceptions made under this paragraph into models through analysis in an automated manner, and
- c. use model inference to formulate options for information or action based on outcomes under subparagraphs a and b of this paragraph.

The term includes generative artificial intelligence;

2. "Artificially generated sexual depiction" means a visual depiction:

- a. that appears to authentically depict an individual in a state of nudity or engaged in sexual conduct that did not occur in reality, and
- b. the production of which was substantially dependent upon technical means, including artificial intelligence or photo editing software, rather than the ability of another person to physically impersonate the other person;

3. "Generative artificial intelligence" means the class of models that emulate the structure and characteristics of input data in order to generate derived synthetic content, including information such as images, videos, audio clips, or text, that has been significantly modified or generated by algorithms, including by artificial intelligence;

4. "Image" includes a photograph, film, videotape, digital recording or other depiction or portrayal of an object, including a human body;

5. "Intimate parts" means the fully unclothed, partially unclothed or transparently clothed genitals, pubic area or female adult nipple;

6. "Sexual act" means sexual intercourse including genital, anal or oral sex; and

7. "Visual depiction" means any depiction, photograph, film, performance, or image displayed, stored, shared, or transmitted in any format and on any medium including data that is capable of being converted into a depiction, picture, movie, performance, or image.

B. 1. A person commits nonconsensual dissemination of private sexual images when he or she:

- a. intentionally disseminates an image of another person who is engaged in a sexual act or whose intimate parts are exposed, in whole or in part,
- b. obtains the image under circumstances in which a reasonable person would know or understand that the image was to remain private, and
- c. disseminates the image without the effective consent of the depicted person.

2. A person commits nonconsensual dissemination of private sexual images when he or she:

- a. disseminates an artificially generated sexual depiction of another person with the intent or with reckless disregard to harass, annoy, threaten, alarm, or cause physical, emotional, reputational, or economic harm to the depicted person, and
- b. disseminates the artificially generated sexual depiction without the effective consent of the depicted person.

C. The provisions of this section shall not apply to the intentional dissemination of an image or artificially generated

sexual depiction of another identifiable person who is engaged in a sexual act or whose intimate parts are exposed when:

1. The dissemination is made for the purpose of a criminal investigation that is otherwise lawful;
2. The dissemination is for the purpose of, or in connection with, the reporting of unlawful conduct;
3. The images or artificially generated sexual depictions involve voluntary exposure in public or commercial settings; or
4. The dissemination serves a lawful purpose.

D. Nothing in this section shall be construed to impose liability upon the following entities solely as a result of content or information provided by another person:

1. An interactive computer service, as defined in 47 U.S.C., Section 230(f)(2);
2. A wireless service provider, as defined in Section 332(d) of the Telecommunications Act of 1996, 47 U.S.C., Section 151 et seq., Federal Communications Commission rules, and the Omnibus Budget Reconciliation Act of 1993, Pub. L. No. 103-66; or
3. A telecommunications network or broadband provider.

E. A person convicted under this section is subject to the forfeiture provisions in Section 1040.54 of this title.

F. Any person who violates the provisions of subsection B of this section shall, upon conviction, be guilty of a misdemeanor punishable by imprisonment in a county jail for not more than one (1) year or by a fine of not more than One Thousand Dollars (\$1,000.00), or both such fine and imprisonment.

G. Any person who violates or attempts to violate the provisions of subsection B of this section and who gains or attempts to gain any property or who gains or attempts to gain anything of value as a result of the nonconsensual dissemination or threatened dissemination of private sexual images or artificially generated

sexual depictions shall, upon conviction, be guilty of a Class D1 felony offense punishable by imprisonment in the custody of the Department of Corrections for not more than five (5) years as provided for in subsections B through F of Section 20N of this title. A second or subsequent violation of this subsection shall be a Class D1 felony offense punishable by imprisonment in the custody of the Department of Corrections for not more than ten (10) years as provided for in subsections B through F of Section 20N of this title and the offender shall be required to register as a sex offender under the Sex Offenders Registration Act.

H. The state shall not have the discretion to file a misdemeanor charge, pursuant to Section 234 of Title 22 of the Oklahoma Statutes, for a violation pursuant to subsection G of this section.

I. The court shall have the authority to order the defendant to remove the disseminated image or artificially generated sexual depictions should the court find it is in the power of the defendant to do so.

J. Nothing in this section shall prohibit the prosecution of a person pursuant to the provisions of Section 1021.2, 1021.3, 1024.1, 1024.2, or 1040.12a of this title or any other applicable statute.

K. Any person who violates the provisions of subsection B of this section by disseminating three or more images or artificially generated sexual depictions within a six-month period shall, upon conviction, be guilty of a Class D1 felony offense punishable by imprisonment in the custody of the Department of Corrections for not more than ten (10) years as provided for in subsections B through F of Section 20N of this title.

SECTION 38. REPEALER 21 O.S. 2021, Section 1040.13b, as last amended by Section 399, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1040.13b), is hereby repealed.

SECTION 39. AMENDATORY 21 O.S. 2021, Section 1111, as last amended by Section 1, Chapter 60, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1111), is amended to read as follows:

Section 1111. A. Rape is an act of sexual intercourse involving vaginal or anal penetration accomplished with a male or female within or without the bonds of matrimony who may be of the same or the opposite sex as the perpetrator under any of the following circumstances:

1. Where the victim is under ~~sixteen (16)~~ eighteen (18) years of age;

2. Where the victim is incapable through mental illness or any other unsoundness of mind, whether temporary or permanent, of giving legal consent;

3. Where force or violence is used or threatened, accompanied by apparent power of execution to the victim or to another person;

4. Where the victim is intoxicated by a narcotic or anesthetic agent, administered by or with the privity of the accused as a means of forcing the victim to submit;

5. Where the victim is at the time unconscious of the nature of the act and this fact is known to the accused;

6. Where the victim submits to sexual intercourse under the belief that the person committing the act is a spouse, and this belief is induced by artifice, pretense, or concealment practiced by the accused or by the accused in collusion with the spouse with intent to induce that belief. In all cases of collusion between the accused and the spouse to accomplish such act, both the spouse and the accused, upon conviction, shall be deemed guilty of rape;

7. Where the victim is under the legal custody or supervision of a state agency, a federal agency, a county, a municipality, or a political subdivision and engages in sexual intercourse with a state, federal, county, municipal, or political subdivision employee or an employee of a contractor of the state, the federal government, a county, a municipality, or a political subdivision that exercises authority over the victim, or the subcontractor or employee of a subcontractor of the contractor of the state or federal government, a county, a municipality, or a political subdivision that exercises authority over the victim;

8. Where the victim is ~~at least sixteen (16) years of age and~~ ~~is~~ less than twenty (20) years of age and is a student, or under the legal custody or supervision of any public or private elementary or secondary school, junior high or high school, or public vocational school, and engages in sexual intercourse with a person who is eighteen (18) years of age or older and is an employee, contractor, or subcontractor of a school system. For purposes of this section, "employee of a school system" shall include employed and contracted school resource officers and security guards;

9. Where the victim is nineteen (19) years of age or younger and is in the legal custody of a state agency, federal agency or tribal court and engages in sexual intercourse with a foster parent or foster parent applicant; or

10. Where the victim is a student at a secondary school, is concurrently enrolled at an institution of higher education, and engages in acts pursuant to this subsection with a perpetrator who is an employee of the institution of higher education ~~of~~ at which the victim is enrolled.

B. "Employee of an institution of higher education", for purposes of this section, means faculty, adjunct faculty, instructors, volunteers, or an employee of a business contracting with an institution of higher education who may exercise, at any time, institutional authority over the victim. Employee of an institution of higher education shall not include an enrolled student who is not more than three (3) years of age or older than the concurrently enrolled student and who is employed or volunteering, in any capacity, for the institution of higher education.

SECTION 40. REPEALER 21 O.S. 2021, Section 1111, as last amended by Section 1, Chapter 103, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1111), is hereby repealed.

SECTION 41. REPEALER 21 O.S. 2021, Section 1111, as last amended by Section 1, Chapter 365, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1111), is hereby repealed.

SECTION 42. REPEALER 21 O.S. 2021, Section 1115, as amended by Section 5, Chapter 455, O.S.L. 2002, is hereby repealed.

SECTION 43. AMENDATORY 21 O.S. 2021, Section 1123, as last amended by Section 2, Chapter 281, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1123), is amended to read as follows:

Section 1123. A. It is a Class A3 felony offense for any person to knowingly and intentionally:

1. Make any oral, written or electronically or computer-generated lewd or indecent proposal to any child under sixteen (16) years of age, or other individual the person believes to be a child under sixteen (16) years of age, for the child to have unlawful sexual relations or sexual intercourse with any person;

2. Look upon, touch, maul, or feel the body or private parts of any child under sixteen (16) years of age in any lewd or lascivious manner by any acts against public decency and morality, as defined by law;

3. Ask, invite, entice, or persuade any child under sixteen (16) years of age, or other individual the person believes to be a child under sixteen (16) years of age, to go alone with any person to a secluded, remote, or secret place, with the unlawful and willful intent and purpose then and there to commit any crime against public decency and morality, as defined by law, with the child;

4. In any manner lewdly or lasciviously look upon, touch, maul, or feel the body or private parts of any child under sixteen (16) years of age in any indecent manner or in any manner relating to sexual matters or sexual interest; or

5. In a lewd and lascivious manner and for the purpose of sexual gratification:

- a. urinate or defecate upon a child under sixteen (16) years of age, or force or require a child to defecate or urinate upon the body or private parts of another, or for the purpose of sexual gratification,
- b. ejaculate upon or in the presence of a child,

- c. cause, expose, force or require a child to look upon the body or private parts of another person,
- d. force or require any child under sixteen (16) years of age or other individual the person believes to be a child under sixteen (16) years of age, to view any obscene materials, child sexual abuse material or materials deemed harmful to minors as such terms are defined by Sections 1024.1 and 1040.75 of this title,
- e. cause, expose, force or require a child to look upon sexual acts performed in the presence of the child, or
- f. force or require a child to touch or feel the body or private parts of the child or another person.

Any person convicted of any violation of this subsection shall be punished by imprisonment in the custody of the Department of Corrections for not less than three (3) years nor more than twenty (20) years, except when the child is under twelve (12) years of age at the time the offense is committed, and in such case the person shall, upon conviction, be punished by death or by imprisonment in the custody of the Department of Corrections for a term of not less than ten (10) years, life, or life without parole. The provisions of this subsection shall not apply unless the accused is at least three (3) years older than the victim, except when accomplished by the use of force or fear. Except as provided in Section 51.1a of this title, any person convicted of a second or subsequent violation of this subsection shall be guilty of a felony punishable as provided in this subsection and shall not be eligible for probation, suspended or deferred sentence. Except as provided in Section 51.1a of this title, any person convicted of a third or subsequent violation of this subsection shall be guilty of a felony punishable by imprisonment in the custody of the Department of Corrections for a term of life or life without parole, in the discretion of the jury, or in case the jury fails or refuses to fix punishment then the same shall be pronounced by the court. Any person convicted of a violation of this subsection after having been twice convicted of a violation of subsection A of Section 1114 of this title, Section 888 of this title, sexual abuse of a child pursuant to Section 843.5 of this title, or of any attempt to commit any of these offenses or any combination of convictions pursuant to these sections shall be

punished by imprisonment in the custody of the Department of Corrections for a term of life or life without parole.

B. No person shall commit sexual battery on any other person. "Sexual battery" shall mean the intentional touching, mauling or feeling of the body or private parts of any person sixteen (16) years of age or older, in a lewd and lascivious manner:

1. Without the consent of that person;

2. When committed by a state, county, municipal or political subdivision employee or a contractor or an employee of a contractor of the state, a county, a municipality or political subdivision of this state upon a person who is under the legal custody, supervision or authority of a state agency, a county, a municipality or a political subdivision of this state, or the subcontractor or employee of a subcontractor of the contractor of the state or federal government, a county, a municipality or a political subdivision of this state;

3. When committed upon a person who is at least sixteen (16) years of age and is less than twenty (20) years of age and is a student, or in the legal custody or supervision of any public or private elementary or secondary school, or technology center school, by a person who is eighteen (18) years of age or older and is an employee of a school system;

4. When committed upon a person who is nineteen (19) years of age or younger and is in the legal custody of a state agency, federal agency or a tribal court, by a foster parent or foster parent applicant; or

5. When the victim is a student at a secondary school, is concurrently enrolled at an institution of higher education, and engages in acts pursuant to this subsection with a perpetrator who is an employee of the institution of higher education of which the student is enrolled.

As used in this subsection, "employee of an institution of higher education" means faculty, adjunct faculty, instructors, volunteers, or an employee of a business contracting with an institution of higher education who may exercise, at any time,

institutional authority over the victim. Employee of an institution of higher education shall not include an enrolled student who is not more than three (3) years of age or older than the concurrently enrolled student and who is employed or volunteering, in any capacity, for the institution of higher education.

As used in this subsection, "employee of a school system" means a teacher, principal or other duly appointed person employed by a school system or an employee of a firm contracting with a school system, including a school resource officer and security guard.

C. No person shall in any manner lewdly or lasciviously:

1. Look upon, touch, maul, or feel the body or private parts of any human corpse in any indecent manner relating to sexual matters or sexual interest; or

2. Urinate, defecate or ejaculate upon any human corpse.

D. Any person convicted of a violation of subsection B or C of this section shall be deemed guilty of a Class B4 felony offense and shall be punished by imprisonment in the custody of the Department of Corrections for not more than ten (10) years.

E. The fact that an undercover operative or law enforcement officer was involved in the detection and investigation of an offense pursuant to this section shall not constitute a defense to a prosecution under this section.

F. Except for persons sentenced to life or life without parole, any person sentenced to imprisonment for two (2) years or more for a violation of this section shall be required to serve a term of post-imprisonment supervision pursuant to subparagraph f of paragraph 1 of subsection A of Section 991a of Title 22 of the Oklahoma Statutes under conditions determined by the Department of Corrections. The jury shall be advised that the mandatory post-imprisonment supervision shall be in addition to the actual imprisonment.

SECTION 44. REPEALER 21 O.S. 2021, Section 1123, as last amended by Section 2, Chapter 60, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1123), is hereby repealed.

SECTION 45. REPEALER 21 O.S. 2021, Section 1123, as last amended by Section 38, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1123), is hereby repealed.

SECTION 46. AMENDATORY 21 O.S. 2021, Section 1173, as last amended by Section 1, Chapter 145, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1173), is amended to read as follows:

Section 1173. A. Any person who willfully, maliciously, and repeatedly follows or harasses another person in a manner that:

1. Would cause a reasonable person or a member of the immediate family of that person as defined in subsection F of this section to feel frightened, intimidated, threatened, harassed, or molested; and

2. Actually causes the person being followed or harassed to feel terrorized, frightened, intimidated, threatened, harassed, or molested,

shall, upon conviction, be guilty of the crime of stalking, which is a felony punishable by imprisonment in the custody of the Department of Corrections for a term not to exceed three (3) years, or by a fine not to exceed Five Thousand Dollars (\$5,000.00), or by both such fine and imprisonment. Any person convicted of a second violation of the provisions of this subsection shall be punished by imprisonment in the custody of the Department of Corrections for a term not to exceed six (6) years, or by a fine not to exceed Ten Thousand Dollars (\$10,000.00), or by both such fine and imprisonment. Any person convicted of a third or subsequent violation of the provisions of this subsection shall be punished by imprisonment in the custody of the Department of Corrections for a term not to exceed twelve (12) years, or by a fine not to exceed Fifteen Thousand Dollars (\$15,000.00), or by both such fine and imprisonment.

B. Any person who violates the provisions of subsection A of this section when:

1. There is a permanent or temporary restraining order, a protective order, an emergency ex parte protective order, or an injunction in effect prohibiting the behavior described in subsection A of this section against the same party, when the person

violating the provisions of subsection A of this section has actual notice of the issuance of such order or injunction;

2. Said person is on probation or parole, a condition of which prohibits the behavior described in subsection A of this section against the same party or under the conditions of a community or alternative punishment; or

3. Said person, within ten (10) years preceding the violation of subsection A of this section, completed the execution of sentence for a conviction of a crime involving the use or threat of violence against the same party, or against any member of the immediate family of such party,

shall, upon conviction, be guilty of a Class B5 felony offense punishable by imprisonment in the custody of the Department of Corrections for a term not to exceed fifteen (15) years, or by a fine not to exceed Twenty Thousand Dollars (\$20,000.00), or by both such fine and imprisonment.

C. Any person who:

1. Commits a second act of stalking within ten (10) years of the completion of sentence for a prior conviction of stalking; or

2. Has a prior conviction of stalking and, after being served with a protective order that prohibits contact with an individual, knowingly makes unconsented contact with the same individual,

shall, upon conviction, be guilty of a felony punishable by imprisonment in the custody of the Department of Corrections for a term not to exceed twenty (20) years, or by a fine not to exceed Twenty-five Thousand Dollars (\$25,000.00), or by both such fine and imprisonment.

D. Any person who commits an act of stalking within ten (10) years of the completion of execution of sentence for a prior conviction under subsection B or C of this section shall, upon conviction, be guilty of a Class B4 felony offense punishable by imprisonment in the custody of the Department of Corrections for a term not to exceed twenty-five (25) years, or by a fine not to

exceed Thirty Thousand Dollars (\$30,000.00), or by both such fine and imprisonment.

E. Evidence that the defendant continued to engage in a course of conduct involving repeated unconsented contact, as defined in subsection F of this section, with the victim after having been requested by the victim to discontinue the same or any other form of unconsented contact, and to refrain from any further unconsented contact with the victim, shall give rise to a rebuttable presumption that the continuation of the course of conduct caused the victim to feel terrorized, frightened, intimidated, threatened, harassed, or molested.

F. For purposes of determining the crime of stalking, the following definitions shall apply:

1. "Harasses" means a pattern or course of conduct directed toward another individual that includes, but is not limited to, repeated or continuing unconsented contact, that would cause a reasonable person to suffer emotional distress, and that actually causes emotional distress to the victim. Harassment shall include harassing or obscene phone calls as prohibited by Section 1172 of this title and conduct prohibited by Section 850 of this title. Harassment does not include constitutionally protected activity or conduct that serves a legitimate purpose;

2. "Course of conduct" means a series of two or more separate acts over a period of time, however short or long, evidencing a continuity of purpose, including any of the following:

- a. maintaining a visual or physical proximity to the victim,
- b. approaching or confronting the victim in a public place or on private property,
- c. appearing at the workplace of the victim or contacting the employer or coworkers of the victim,
- d. appearing at the home of the victim or contacting the neighbors of the victim,

- e. entering onto or remaining on property owned, leased, or occupied by the victim,
- f. contacting the victim by telephone, text message, electronic message, electronic mail, or other means of electronic communication or causing the telephone or electronic device of the victim or the telephone or electronic device of any other person to ring or generate notifications repeatedly or continuously, regardless of whether a conversation ensues,
- g. photographing, videotaping, audiotaping, or, through any other electronic means, monitoring or recording the activities of the victim. This subparagraph applies regardless of where the act occurs,
- h. sending to the victim any physical or electronic material or contacting the victim by any means, including any message, comment, or other content posted on any Internet site or web application,
- i. sending to a family member or member of the household of the victim, or any current or former employer of the victim, or any current or former coworker of the victim, or any friend of the victim, any physical or electronic material or contacting such person by any means, including any message, comment, or other content posted on any Internet site or web application, for the purpose of obtaining information about, disseminating information about, or communicating with the victim,
- j. placing an object on or delivering an object to property owned, leased, or occupied by the victim,
- k. delivering an object to a family member or member of the household of the victim, or an employer, coworker, or friend of the victim, or placing an object on, or delivering an object to, property owned, leased, or occupied by such a person with the intent that the object be delivered to the victim, or

1. causing a person to engage in any of the acts described in subparagraphs a through k of this paragraph.

Constitutionally protected activity is not included within the meaning of "course of conduct";

3. "Emotional distress" means significant mental suffering or distress that may, but does not necessarily require, medical or other professional treatment or counseling;

4. "Unconsented contact" means any contact with another individual that is initiated or continued without the consent of the individual, or in disregard of that individual's expressed desire that the contact be avoided or discontinued. Constitutionally protected activity is not included within the meaning of unconsented contact. Unconsented contact includes but is not limited to any of the following:

- a. following or appearing within the sight of that individual,
- b. approaching or confronting that individual in a public place or on private property,
- c. appearing at the workplace or residence of that individual,
- d. entering onto or remaining on property owned, leased, or occupied by that individual,
- e. contacting that individual by telephone,
- f. sending mail or electronic communications to that individual, and
- g. placing an object on, or delivering an object to, property owned, leased, or occupied by that individual;

5. "Member of the immediate family", for the purposes of this section, means any spouse, parent, child, person related within the

third degree of consanguinity or affinity or any other person who regularly resides in the household or who regularly resided in the household within the prior six (6) months; and

6. "Following" shall include the tracking of the movement or location of an individual through the use of a Global Positioning System (GPS) device or other monitoring device by a person, or person who acts on behalf of another, without the consent of the individual whose movement or location is being tracked; provided, this shall not apply to the lawful use of a GPS device or other monitoring device or to the use by a new or used motor vehicle dealer or other motor vehicle creditor of a GPS device or other monitoring device, including a device containing technology used to remotely disable the ignition of a motor vehicle, in connection with lawful action after default of the terms of a motor vehicle credit sale, loan or lease, and with the express written consent of the owner or lessee of the motor vehicle.

G. Any pleas of guilty or nolo contendere or finding of guilt to a violation of any provision of this section shall constitute a conviction of the offense for the purpose of any subsection of this section under which the existence of a prior conviction is relevant for a period of ten (10) years following the completion of any sentence or court imposed probationary term.

SECTION 47. REPEALER 21 O.S. 2021, Section 1173, as last amended by Section 118, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1173), is hereby repealed.

SECTION 48. AMENDATORY 21 O.S. 2021, Section 1277, as amended by Section 2, Chapter 251, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1277), is amended to read as follows:

Section 1277.

UNLAWFUL CARRY IN CERTAIN PLACES

A. It shall be unlawful for any person, including a person in possession of a valid handgun license issued pursuant to the provisions of the Oklahoma Self-Defense Act, to carry any concealed or unconcealed firearm into any of the following places:

1. Any building or office space which is owned or leased by a city, town, county, or state governmental authority for the purpose of conducting business with the public. However, the governing body of a city or town may authorize the concealed carry of handguns into any building or office space that is owned or leased by a city or town, except those places listed in paragraph 2 of this subsection;

2. Any courthouse, courtroom, prison, jail, detention facility, or any facility used to process, hold, or house arrested persons, prisoners, or persons alleged delinquent or adjudicated delinquent, except as provided in Section 21 of Title 57 of the Oklahoma Statutes;

3. Any public or private elementary or public or private secondary school, except as provided in subsections C and D of this section;

4. Any publicly owned or operated sports arena or venue during a professional sporting event, unless allowed by the event holder;

5. Any place where gambling is authorized by law, unless allowed by the property owner;

6. Any other place specifically prohibited by law; and

7. Any property set aside by a county, city, town, public trust with a county, city, or town as a beneficiary, or state governmental authority for an event that is secured with minimum security provisions. For purposes of this paragraph, a minimum security provision consists of a location that is secured utilizing the following:

- a. a metallic-style security fence that is at least eight (8) feet in height that encompasses the property and is secured in such a way as to deter unauthorized entry,
- b. controlled access points staffed by a uniformed, commissioned peace officer, and

- c. a metal detector whereby persons walk or otherwise travel with their property through or by the metal detector.

B. It shall be lawful for a person to carry a concealed or unconcealed firearm on the following properties:

1. Any property set aside for the use or parking of any vehicle, whether attended or unattended, by a city, town, county, or state governmental authority;

2. Any property set aside for the use or parking of any vehicle, whether attended or unattended, which is open to the public, or by any entity engaged in gambling authorized by law;

3. Any property adjacent to a building or office space in which concealed or unconcealed weapons are prohibited by the provisions of this section;

4. Any property designated by a city, town, county, or state governmental authority as a park, recreational area, wildlife refuge, wildlife management area, or fairgrounds; provided, nothing in this paragraph shall be construed to authorize any entry by a person in possession of a concealed or unconcealed firearm into any building, office space, or event which is specifically prohibited by the provisions of subsection A of this section;

5. Any property set aside by a public or private elementary or secondary school for the use or parking of any vehicle, whether attended or unattended; provided, however, the firearm shall be stored and hidden from view in a locked motor vehicle when the motor vehicle is left unattended on school property; and

6. Any public property set aside temporarily by a county, city, town, public trust with a county, city, or town as a beneficiary, or state governmental authority for the holder of an event permit that is without minimum security provisions, as such term is defined in paragraph 7 of subsection A of this section; provided, the carry of firearms within the permitted event area shall be limited to concealed carry of a handgun unless otherwise authorized by the holder of the event permit.

Nothing contained in any provision of this subsection or subsection C of this section shall be construed to authorize or allow any person in control of any place described in subsection A of this section to establish any policy or rule that has the effect of prohibiting any person in lawful possession of a handgun license or otherwise in lawful possession of a firearm from carrying or possessing the firearm on the property described in this subsection.

C. A concealed or unconcealed weapon may be carried onto private school property or in any school bus or vehicle used by any private school for transportation of students or teachers by a person who is licensed pursuant to the Oklahoma Self-Defense Act, provided a policy has been adopted by the governing entity of the private school that authorizes the carrying and possession of a weapon on private school property or in any school bus or vehicle used by a private school. Except for acts of gross negligence or willful or wanton misconduct, a governing entity of a private school that adopts a policy which authorizes the possession of a weapon on private school property, a school bus, or a vehicle used by the private school shall not be subject to liability for any injuries arising from the adoption of the policy. The provisions of this subsection shall not apply to claims pursuant to the Administrative Workers' Compensation Act.

D. ~~Notwithstanding paragraph 3 of subsection A of this section,~~
a board of education of a school district may adopt a policy pursuant to Section 5-149.2 of Title 70 of the Oklahoma Statutes to authorize the carrying of a handgun onto school property by school personnel specifically designated by the board of education, provided such personnel either:

1. Possess a valid armed security guard license as provided for in the Oklahoma Security Guard and Private Investigator Act; or
2. Hold a valid reserve peace officer certification as provided for in Section 3311 of Title 70 of the Oklahoma Statutes.

Nothing in this subsection shall be construed to restrict authority granted elsewhere in law to carry firearms.

E. Notwithstanding the provisions of subsection A of this section, on any property designated as a municipal zoo or park of any size that is owned, leased, operated, or managed by:

1. A public trust created pursuant to the provisions of Section 176 of Title 60 of the Oklahoma Statutes; or

2. A nonprofit entity,

an individual shall be allowed to carry a concealed handgun but not openly carry a handgun on the property.

F. Any person violating the provisions of paragraph 2 or 3 of subsection A of this section shall, upon conviction, be guilty of a misdemeanor punishable by a fine not to exceed Two Hundred Fifty Dollars (\$250.00). A person violating any other provision of subsection A of this section may be denied entrance onto the property or removed from the property. If the person refuses to leave the property and a peace officer is summoned, the person may be issued a citation for an amount not to exceed Two Hundred Fifty Dollars (\$250.00).

G. No person in possession of a valid handgun license issued pursuant to the provisions of the Oklahoma Self-Defense Act or who is carrying or in possession of a firearm as otherwise permitted by law or who is carrying or in possession of a machete, blackjack, loaded cane, hand chain, or metal knuckles shall be authorized to carry the firearm, machete, blackjack, loaded cane, hand chain, or metal knuckles into or upon any college, university, or technology center school property, except as provided in this subsection. For purposes of this subsection, the following property shall not be construed to be college, university, or technology center school property:

1. Any property set aside for the use or parking of any motor vehicle, whether attended or unattended, provided the firearm, machete, blackjack, loaded cane, hand chain, or metal knuckles are carried or stored as required by law and the firearm, machete, blackjack, loaded cane, hand chain, or metal knuckles are not removed from the motor vehicle without the prior consent of the college or university president or technology center school

administrator while the vehicle is on any college, university, or technology center school property;

2. Any property authorized for possession or use of firearms, machetes, blackjacks, loaded canes, hand chains, or metal knuckles by college, university, or technology center school policy; and

3. Any property authorized by the written consent of the college or university president or technology center school administrator, provided the written consent is carried with the firearm, machete, blackjack, loaded cane, hand chain, or metal knuckles and the valid handgun license while on college, university, or technology center school property.

The college, university, or technology center school may notify the Oklahoma State Bureau of Investigation within ten (10) days of a violation of any provision of this subsection by a licensee. Upon receipt of a written notification of violation, the Bureau shall give a reasonable notice to the licensee and hold a hearing. At the hearing, upon a determination that the licensee has violated any provision of this subsection, the licensee may be subject to an administrative fine of Two Hundred Fifty Dollars (\$250.00) and may have the handgun license suspended for three (3) months.

Nothing contained in any provision of this subsection shall be construed to authorize or allow any college, university, or technology center school to establish any policy or rule that has the effect of prohibiting any person in lawful possession of a handgun license or any person in lawful possession of a firearm, machete, blackjack, loaded cane, hand chain, or metal knuckles from possession of a firearm, machete, blackjack, loaded cane, hand chain, or metal knuckles in places described in paragraphs 1, 2, and 3 of this subsection. Nothing contained in any provision of this subsection shall be construed to limit the authority of any college, university, or technology center school in this state from taking administrative action against any student for any violation of any provision of this subsection.

H. The provisions of this section shall not apply to the following:

1. Any peace officer or any person authorized by law to carry a firearm in the course of employment;

2. Any district judge, associate district judge, ~~or~~ special district judge, Judge of the Court of Civil Appeals, Judge of the Court of Criminal Appeals, or Justice of the Supreme Court who is in possession of a valid handgun license issued pursuant to the provisions of the Oklahoma Self-Defense Act and whose name appears on a list maintained by the Administrative Director of the Courts, when acting in the course and scope of employment within the courthouses of the county that falls within the jurisdiction of the district judge, associate district judge, or special district judge;

3. Any private investigator with a firearms authorization when acting in the course and scope of employment;

4. ~~Any~~ An elected official of a county, who is in possession of a valid handgun license issued pursuant to the provisions of the Oklahoma Self-Defense Act, may carry a concealed handgun when acting in the performance of his or her duties within the courthouses of the county in which he or she was elected. The provisions of this paragraph shall not allow the elected county official to carry the handgun into a courtroom;

5. The sheriff of any county may authorize certain employees of the county, who possess a valid handgun license issued pursuant to the provisions of the Oklahoma Self-Defense Act, to carry a concealed handgun when acting in the course and scope of employment within the courthouse in the county in which the person is employed. Nothing in the Oklahoma Self-Defense Act shall prohibit the sheriff from requiring additional instruction or training before granting authorization to carry a concealed handgun within the courthouse. The provisions of this paragraph and of paragraph 6 of this subsection shall not allow the county employee to carry the handgun into a courtroom, sheriff's office, adult or juvenile jail, or any other prisoner detention area;

6. The board of county commissioners of any county may authorize certain employees of the county, who possess a valid handgun license issued pursuant to the provisions of the Oklahoma Self-Defense Act, to carry a concealed handgun when acting in the course and scope of employment on county annex facilities or grounds

surrounding the county courthouse that fall within the jurisdiction of the county employees; and

7. Any municipal judge, who is in possession of a valid handgun license issued pursuant to the provisions of the Oklahoma Self-Defense Act, when acting in the course and scope of employment within the courthouses of the municipality that are within the jurisdiction of the municipal judge.

I. 1. Any elected official of a municipality or any municipal employee approved by the governing body of a municipality, who possesses a valid handgun license issued pursuant to the provisions of the Oklahoma Self-Defense Act, may carry a concealed handgun when acting in the performance of his or her official duties within municipal buildings that are within the jurisdiction of the elected official or municipal employee.

2. For purposes of this subsection, a firearm may not be present inside a firearm-prohibited location, which shall include:

- a. any building or office space on municipally owned or leased property designated as a firearm-prohibited location by the municipality, municipal trust, or municipal authority, and
- b. any police department, courthouse, courtroom, prison, jail, detention facility, or any facility used to process, hold, or house arrested persons, prisoners, or persons alleged delinquent or adjudicated delinquent.

3. Nothing in this subsection shall be construed to require an elected official or designated employee of the municipality to carry a firearm as a condition of employment or service with the municipality.

J. For the purposes of this section, "motor vehicle" means any automobile, truck, minivan, sport utility vehicle, or motorcycle, as defined in Section 1-135 of Title 47 of the Oklahoma Statutes, equipped with a locked accessory container within or affixed to the motorcycle.

SECTION 49. REPEALER 21 O.S. 2021, Section 1277, as amended by Section 1, Chapter 70, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1277), is hereby repealed.

SECTION 50. AMENDATORY 21 O.S. 2021, Section 1289.16, as amended by Section 3, Chapter 261, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1289.16), is amended to read as follows:

Section 1289.16.

FELONY POINTING FIREARMS

A. It shall be lawful to point a firearm, knife, or any other deadly weapon at another person or persons by:

1. A person who can legally own or possess a weapon pursuant to the provisions of Section 1272 of this title:

- a. during an act of self-defense, or
- b. in defense of real or private property, whether owned, leased, or occupied by permission of the property owner and whether or not the person possesses a valid handgun license issued pursuant to the Oklahoma Self-Defense Act;

2. A person in the defensive display of a firearm or other deadly weapon, as provided for in Section 1289.25 of this title;

3. Law enforcement authorities in the performance of their duties;

4. Armed security guards licensed by the Council on Law Enforcement Education and Training pursuant to the Oklahoma Security Guard and Private Investigator Act in the performance of their duties;

5. Members of the state military forces in the performance of their duties;

6. Members of the federal military reserve and active military components in the performance of their duties;

7. Any federal government law enforcement officer in the performance of any duty; or

8. Any person during the performance of a play on stage, while participating in a rodeo, or when participating in a television program or film project.

B. It shall be unlawful for any person to willfully and without lawful cause point a firearm, knife, or any other deadly weapon, whether loaded or not, at any person or persons for the purpose of threatening or with the intention of discharging the firearm or with any malice or for any purpose of injuring, either through physical injury or mental or emotional intimidation, or for purposes of whimsy, humor, or prank, or in anger or otherwise.

C. Any person convicted of a violation of the provisions of this section shall be guilty of a Class B4 felony offense and shall be punished as provided in Section 1289.17 of this title.

SECTION 51. REPEALER 21 O.S. 2021, Section 1289.16, as amended by Section 131, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1289.16), is hereby repealed.

SECTION 52. REPEALER 21 O.S. 2021, Section 1290.5, as amended by Section 5, Chapter 146, O.S.L. 2021, is hereby repealed.

SECTION 53. REPEALER 21 O.S. 2021, Section 1451, as amended by Section 1, Chapter 221, O.S.L. 2016, is hereby repealed.

SECTION 54. REPEALER 21 O.S. 2021, Section 1521, as amended by Section 2, Chapter 221, O.S.L. 2016, is hereby repealed.

SECTION 55. REPEALER 21 O.S. 2021, Section 1541.2, as amended by Section 5, Chapter 221, O.S.L. 2016, is hereby repealed.

SECTION 56. REPEALER 21 O.S. 2021, Section 1541.3, as amended by Section 6, Chapter 221, O.S.L. 2016, is hereby repealed.

SECTION 57. REPEALER 21 O.S. 2021, Section 1577, as amended by Section 11, Chapter 221, O.S.L. 2016, is hereby repealed.

SECTION 58. REPEALER 21 O.S. 2021, Section 1578, as amended by Section 12, Chapter 221, O.S.L. 2016, is hereby repealed.

SECTION 59. REPEALER 21 O.S. 2021, Section 1579, as amended by Section 13, Chapter 221, O.S.L. 2016, is hereby repealed.

SECTION 60. REPEALER 21 O.S. 2021, Section 1621, as amended by Section 15, Chapter 221, O.S.L. 2016, is hereby repealed.

SECTION 61. REPEALER 21 O.S. 2021, Section 1704, as amended by Section 16, Chapter 221, O.S.L. 2016, is hereby repealed.

SECTION 62. REPEALER 21 O.S. 2021, Section 1705, as amended by Section 17, Chapter 221, O.S.L. 2016, is hereby repealed.

SECTION 63. REPEALER 21 O.S. 2021, Section 1713, as amended by Section 18, Chapter 221, O.S.L. 2016, is hereby repealed.

SECTION 64. REPEALER 21 O.S. 2021, Section 1731, as amended by Section 19, Chapter 221, O.S.L. 2016, is hereby repealed.

SECTION 65. AMENDATORY 21 O.S. 2021, Section 1903, as amended by Section 2, Chapter 405, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1903), is amended to read as follows:

Section 1903. A. No person shall by force or violence, or threat of force or violence, seize or exercise control of any rolling stock transit vehicle. Any person violating this subsection shall be guilty of a Class B1 felony offense and shall, upon conviction, be punished by imprisonment in the custody of the Department of Corrections for not more than twenty (20) years, or by a fine not more than Twenty Thousand Dollars (\$20,000.00), or by both such fine and imprisonment.

B. No person shall intimidate, threaten, assault, or batter any driver, attendant, guard, or passenger of any rolling stock transit vehicle or cause disruption to the provided service or cause harm to any person. Any person violating this subsection shall be guilty of a Class B4 felony offense and shall, upon conviction, be punished by imprisonment in the custody of the Department of Corrections for not more than ten (10) years, by a fine not more than Five Thousand Dollars (\$5,000.00), or by both such fine and imprisonment.

C. Any person violating subsection A or B of this section using a dangerous or deadly weapon shall be guilty of a Class B1 felony offense, and shall, upon conviction, be punished by imprisonment in the custody of the Department of Corrections for not more than twenty (20) years, by a fine not more than Twenty Thousand Dollars (\$20,000.00), or by both such fine and imprisonment.

D. It shall be unlawful for any person to discharge any firearm into or within any rolling stock transit vehicle, terminal, or other transportation facility, unless such action is determined to have been in defensive force resulting from reasonable fear of imminent peril of death or great bodily harm to himself or herself or another. Such person shall, upon conviction, be guilty of a Class B4 felony offense punishable by a fine not more than Five Thousand Dollars (\$5,000.00), by imprisonment in the custody of the Department of Corrections for not more than five (5) years, or by both such fine and imprisonment.

SECTION 66. REPEALER 21 O.S. 2021, Section 1903, as amended by Section 62, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1903), is hereby repealed.

SECTION 67. AMENDATORY 47 O.S. 2021, Section 11-902, as amended by Section 1, Chapter 347, O.S.L. 2025 (47 O.S. Supp. 2025, Section 11-902), is amended to read as follows:

Section 11-902. A. It is unlawful and punishable as provided for in this section for any person to drive, operate, or be in actual physical control of a motor vehicle within this state, whether upon public roads, highways, streets, turnpikes, other public places or upon any private road, street, alley, or lane which provides access to one or more single or multi-family dwellings, who:

1. Has a blood or breath alcohol concentration, as defined in Section 756 of this title, of eight-hundredths (0.08) or more at the time of a test of such person's blood or breath;

2. Is under the influence of alcohol;

3. Has any amount of a Schedule I chemical or controlled substance, as defined in Section 2-204 of Title 63 of the Oklahoma Statutes, or one of its metabolites or analogs in the person's blood, saliva, urine, or any other bodily fluid at the time of a test of such person's blood, saliva, urine, or any other bodily fluid;

4. Is under the influence of any intoxicating substance other than alcohol which may render such person incapable of safely driving or operating a motor vehicle. The timing requirement for the administration of tests pursuant to Section 756 of this title shall not apply to this paragraph; or

5. Is under the combined influence of alcohol and any other intoxicating substance which may render such person incapable of safely driving or operating a motor vehicle. The timing requirement for the administration of tests pursuant to Section 756 of this title shall not apply to this paragraph.

B. The fact that any person charged with a violation of this section is or has been lawfully entitled to use alcohol or a controlled dangerous substance or any other intoxicating substance shall not constitute a defense against any charge of violating this section.

C. 1. Any person who is convicted of a violation of the provisions of this section shall be guilty of a misdemeanor for the first offense and shall:

- a. participate in an assessment and evaluation pursuant to subsection H of this section and shall follow all recommendations made in the assessment and evaluation,
- b. be punished by imprisonment in jail for not less than ten (10) days nor more than one (1) year, and
- c. be fined not more than One Thousand Dollars (\$1,000.00).

2. Any person who, having been convicted of or having received deferred judgment for a violation of this section or a violation pursuant to the provisions of any law of this state or another state

prohibiting the offenses provided in this section, Section 11-904 of this title, or paragraph 4 of subsection A of Section 852.1 of Title 21 of the Oklahoma Statutes, or having a prior conviction in a municipal criminal court of record for the violation of a municipal ordinance prohibiting the offense provided for in this section, commits a subsequent violation of this section within ten (10) years of the date following the completion of the execution of such sentence or deferred judgment shall, upon conviction, be guilty of a Class C2 felony offense and shall participate in an assessment and evaluation pursuant to subsection H of this section and shall be sentenced to:

- a. follow all recommendations made in the assessment and evaluation for treatment at the defendant's expense,
- b. use of an ignition interlock device, as provided by subparagraph n of paragraph 1 of subsection A of Section 991a of Title 22 of the Oklahoma Statutes,
- c. ~~imprisonment in the custody of the Department of Corrections for not less than one (1) year and not more than five (5) years~~ as provided for in subsections B through F of Section 20M of Title 21 of the Oklahoma Statutes, and
- d. a fine not more than Two Thousand Five Hundred Dollars (\$2,500.00).

However, if the treatment in subsection H of this section does not include residential or inpatient treatment for a period of not less than five (5) days, the person shall serve a term of imprisonment of at least five (5) days.

3. Any person who commits a violation of this section after having been convicted of a felony offense pursuant to the provisions of this section or a violation pursuant to the provisions of any law of this state or another state prohibiting the offenses provided for in this section, Section 11-904 of this title, or paragraph 4 of subsection A of Section 852.1 of Title 21 of the Oklahoma Statutes shall be guilty of a Class B4 felony offense and participate in an assessment and evaluation pursuant to subsection H of this section and shall be sentenced to:

- a. follow all recommendations made in the assessment and evaluation for treatment at the defendant's expense,
- b. two hundred forty (240) hours of community service,
- c. use of an ignition interlock device, as provided by subparagraph n of paragraph 1 of subsection A of Section 991a of Title 22 of the Oklahoma Statutes,
- d. imprisonment in the custody of the Department of Corrections for not less than one (1) year and not more than ten (10) years, and
- e. a fine not more than Five Thousand Dollars (\$5,000.00).

However, if the treatment in subsection H of this section does not include residential or inpatient treatment for a period of not less than ten (10) days, the person shall serve a term of imprisonment of at least ten (10) days.

4. Any person who commits a violation of this section after having been twice convicted of a felony offense pursuant to the provisions of this section or a violation pursuant to the provisions of any law of this state or another state prohibiting the offenses provided for in this section, Section 11-904 of this title, or paragraph 4 of subsection A of Section 852.1 of Title 21 of the Oklahoma Statutes shall be guilty of a Class B3 felony offense and participate in an assessment and evaluation pursuant to subsection H of this section and shall be sentenced to:

- a. follow all recommendations made in the assessment and evaluation for treatment at the defendant's expense, followed by not less than one (1) year of supervision and periodic testing, as provided in subparagraph q of paragraph 1 of subsection A of Section 991a of Title 22 of the Oklahoma Statutes, at the defendant's expense,
- b. four hundred eighty (480) hours of community service,

- c. use of an ignition interlock device, as provided by subparagraph n of paragraph 1 of subsection A of Section 991a of Title 22 of the Oklahoma Statutes, for a minimum of ninety (90) days,
- d. imprisonment in the custody of the Department of Corrections for not less than one (1) year and not more than twenty (20) years, and
- e. a fine not more than Five Thousand Dollars (\$5,000.00).

However, if the person does not undergo residential or inpatient treatment pursuant to subsection H of this section, the person shall serve a term of imprisonment of at least ten (10) days.

5. Any person who, after a previous conviction of a violation of murder in the second degree or manslaughter in the first degree in which the death was caused as a result of driving under the influence of alcohol or other intoxicating substance, is convicted of a violation of this section shall be guilty of a Class A2 felony offense and shall be punished by imprisonment in the custody of the Department of Corrections for not less than five (5) years and not to exceed twenty (20) years, and a fine not more than Ten Thousand Dollars (\$10,000.00).

6. Provided, however, a conviction from another state shall not be used to enhance punishment pursuant to the provisions of this subsection if that conviction is based on a blood or breath alcohol concentration of less than eight-hundredths (0.08).

7. In any case in which a defendant is charged with driving under the influence of alcohol or other intoxicating substance offense within any municipality with a municipal court other than a court of record, the charge shall be presented to the county's district attorney and filed with the district court of the county within which the municipality is located.

D. Any person who is convicted of a violation of driving under the influence while also committing one of more of the following acts:

1. Driving, operating, or being in actual physical control of a motor vehicle while having a blood or breath alcohol concentration of fifteen-hundredths (0.15) or more at the time of a test of such person's blood or breath;

2. Causing a motor vehicle incident involving one or more vehicles that results in a report pursuant to Section 40-102 of this title;

3. Driving in a manner that violates the provisions of Section 11-301, 11-302, 11-306, 11-309, or 11-311 of this title;

4. Driving while eluding peace officers pursuant to Section 540a of Title 21 of the Oklahoma Statutes;

5. Driving with a speed in excess of twenty (20) miles per hour over the speed limit or ten (10) miles per hour over the speed limit within an active school zone;

6. Operating a motor vehicle with a passenger younger than eighteen (18) years of age; or

7. Reckless driving as defined in Section 11-901 of this title, shall, upon conviction, be guilty of aggravated driving under the influence, which shall be a Class B3 felony offense.

E. A person convicted of aggravated driving under the influence shall participate in an assessment and evaluation pursuant to subsection H of this section and shall comply with all recommendations for treatment. Such person shall be sentenced as provided in paragraph 1, 2, 3, 4, or 5 of subsection C of this section and to:

1. Imprisonment as provided in paragraph 1, 2, 3, 4, or 5 of subsection C of this section, provided that:

- a. for a first offense of a violation pursuant to this section, the first ten (10) days of the sentence shall not be subject to probation, suspension, or deferral and may be served by night or weekend incarceration

pursuant to Section 991a of Title 22 of the Oklahoma Statutes,

- b. for a second offense of a violation pursuant to this section, the first thirty (30) days of the sentence shall not be subject to probation, suspension, or deferral; provided further, this mandatory minimum period of confinement shall be served in the county jail as a condition of a suspended or deferred sentence, pursuant to Section 991a of Title 22 of the Oklahoma Statutes, and
- c. the portion of the sentence not subject to probation, suspension, or deferral shall increase by thirty (30) days for each subsequent conviction after the second offense;

2. A fine pursuant to paragraph 1, 2, 3, 4, or 5 of subsection C of this section;

3. Not less than one (1) year of supervision and periodic testing, as provided in subparagraph q of paragraph 1 of subsection A of Section 991a of Title 22 of the Oklahoma Statutes, at the defendant's expense; and

4. An ignition interlock device or devices, as provided by subparagraph n of paragraph 1 of subsection A of Section 991a of Title 22 of the Oklahoma Statutes, for a minimum of one hundred eighty (180) days.

F. When a person is sentenced to imprisonment in the custody of the Department of Corrections, the person shall be processed through the Lexington Assessment and Reception Center or at a place determined by the Director of the Department of Corrections. The Department of Corrections shall classify and assign the person to one or more of the following:

1. The Department of Mental Health and Substance Abuse Services pursuant to paragraph 1 of subsection A of Section 612 of Title 57 of the Oklahoma Statutes; or

2. A correctional facility operated by the Department of Corrections with assignment to substance abuse treatment. Successful completion of a Department-of-Corrections-approved substance abuse treatment program shall satisfy the recommendation for a ten-hour or twenty-four-hour alcohol and drug substance abuse course or treatment program or both. Successful completion of an approved Department of Corrections substance abuse treatment program may precede or follow the required assessment.

G. Service Oklahoma is hereby authorized to reinstate any suspended or revoked driving privilege when the person meets the statutory requirements which affect the existing driving privilege.

H. Any person who is found guilty of a violation of the provisions of this section shall be ordered to participate in an alcohol and drug substance abuse evaluation and assessment program offered by a certified assessment agency or certified assessor for the purpose of evaluating and assessing the receptivity to treatment and prognosis of the person and shall follow all recommendations made in the assessment and evaluation for treatment. The court shall order the person to reimburse the agency or assessor for the evaluation and assessment. Payment shall be remitted by the defendant or on behalf of the defendant by any third party, provided no state-appropriated funds are utilized. The fee for an evaluation and assessment shall be the amount provided in subsection C of Section 3-460 of Title 43A of the Oklahoma Statutes. The evaluation and assessment shall be conducted at a certified assessment agency, the office of a certified assessor, or at another location as ordered by the court. The agency or assessor shall, within seventy-two (72) hours from the time the person is evaluated and assessed, submit a written report to the court for the purpose of assisting the court in its sentencing determination. The court shall, as a condition of any sentence imposed, including deferred and suspended sentences, require the person to participate in and successfully complete all recommendations from the evaluation, such as an alcohol and substance abuse treatment program pursuant to Section 3-452 of Title 43A of the Oklahoma Statutes. If such report indicates that the evaluation and assessment shows that the defendant would benefit from a ten-hour or twenty-four-hour alcohol and drug substance abuse course or a treatment program or both, the court shall, as a condition of any sentence imposed, including deferred and suspended sentences, require the person to follow all recommendations

identified by the evaluation and assessment and ordered by the court. No person, agency, or facility operating an evaluation and assessment program certified by the Department of Mental Health and Substance Abuse Services shall solicit or refer any person evaluated and assessed pursuant to this section for any treatment program or substance abuse service in which such person, agency, or facility has a vested interest; however, this provision shall not be construed to prohibit the court from ordering participation in or any person from voluntarily utilizing a treatment program or substance abuse service offered by such person, agency, or facility. If a person is sentenced to imprisonment in the custody of the Department of Corrections and the court has received a written evaluation report pursuant to the provisions of this subsection, the report shall be furnished to the Department of Corrections with the judgment and sentence. Any evaluation and assessment report submitted to the court pursuant to the provisions of this subsection shall be handled in a manner which will keep such report confidential from the general public's review. Nothing contained in this subsection shall be construed to prohibit the court from ordering judgment and sentence in the event the defendant fails or refuses to comply with an order of the court to obtain the evaluation and assessment required by this subsection. If the defendant fails or refuses to comply with an order of the court to obtain the evaluation and assessment, Service Oklahoma shall not reinstate driving privileges until the defendant has complied in full with such order. Nothing contained in this subsection shall be construed to prohibit the court from ordering judgment and sentence and any other sanction authorized by law for failure or refusal to comply with an order of the court.

I. Any person who is found guilty of a violation of the provisions of this section shall be required by the court to attend a victims impact panel program, as defined in subsection H of Section 991a of Title 22 of the Oklahoma Statutes, if such a program is offered in the county where the judgment is rendered, and to pay a fee of Seventy-five Dollars (\$75.00), as set by the governing authority of the program and approved by the court, to the program to offset the cost of participation by the defendant, if in the opinion of the court the defendant has the ability to pay such fee.

J. Any person who is found guilty of a felony violation of the provisions of this section shall be required to submit to electronic

monitoring as authorized and defined by Section 991a of Title 22 of the Oklahoma Statutes.

K. Any person who is found guilty of a violation of the provisions of this section who has been sentenced by the court to perform any type of community service shall not be permitted to pay a fine in lieu of performing the community service.

~~L. When a person is found guilty of a violation of the provisions of this section, the court shall order, in addition to any other penalty, the defendant to pay an assessment of One Hundred Dollars (\$100.00) to be deposited in the Drug Abuse Education and Treatment Revolving Fund created in Section 2-503.2 of Title 63 of the Oklahoma Statutes, upon collection.~~

~~M.~~ 1. When a person is eighteen (18) years of age or older, and is the driver, operator, or person in physical control of a vehicle, and is convicted of violating any provision of this section while transporting or having in the motor vehicle any child less than eighteen (18) years of age, the fine shall be enhanced to double the amount of the fine imposed for the underlying driving under the influence (DUI) violation which shall be in addition to any other penalties allowed by this section.

2. Nothing in this subsection shall prohibit the prosecution of a person pursuant to Section 852.1 of Title 21 of the Oklahoma Statutes who is in violation of any provision of this section or Section 11-904 of this title.

~~N.~~ M. Any plea of guilty, nolo contendere, or finding of guilt for a violation of this section or a violation pursuant to the provisions of any law of this state or another state prohibiting the offenses provided for in this section, Section 11-904 of this title, or paragraph 4 of subsection A of Section 852.1 of Title 21 of the Oklahoma Statutes shall constitute a conviction of the offense for the purpose of this section; provided, any deferred judgment shall only be considered to constitute a conviction for a period of ten (10) years following the completion of any court-imposed probationary term.

~~O.~~ N. If qualified by knowledge, skill, experience, training, or education, a witness shall be allowed to testify in the form of

an opinion or otherwise solely on the issue of impairment, but not on the issue of specific alcohol concentration level, relating to the following:

1. The results of any standardized field sobriety test including, but not limited to, the horizontal gaze nystagmus (HGN) test administered by a person who has completed training in standardized field sobriety testing; or

2. Whether a person was under the influence of one or more impairing substances and the category of such impairing substance or substances. A witness who has received training and holds a current certification as a drug recognition expert shall be qualified to give the testimony in any case in which such testimony may be relevant.

SECTION 68. REPEALER 47 O.S. 2021, Section 11-902, as amended by Section 3, Chapter 172, O.S.L. 2025 (47 O.S. Supp. 2025, Section 11-902), is hereby repealed.

SECTION 69. REPEALER 47 O.S. 2021, Section 11-902, as amended by Section 6, Chapter 305, O.S.L. 2025 (47 O.S. Supp. 2025, Section 11-902), is hereby repealed.

SECTION 70. REPEALER 47 O.S. 2021, Section 11-902, as amended by Section 33, Chapter 486, O.S.L. 2025 (47 O.S. Supp. 2025, Section 11-902), is hereby repealed.

SECTION 71. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the Senate the 17th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 8th day of April, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____